

Estate Planning for Beginners

*A Plain-English Guide to Wills, Trusts, Powers of Attorney,
and the Beneficiary Forms Your Will Does Not Control*

Ruth Calloway

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["Where's Yours?" Again](#)

Where's Yours?

Aunt Bev was buried on the Tuesday before Thanksgiving in 2023. By Sunday the casseroles were gone, the folding chairs were back in the church basement, and Jess was sitting at my kitchen table with her coat still on, holding an envelope from the county probate court.

It was addressed to me. Bev had named me her executor.

Jess turned the envelope over twice. She teaches seventh-grade science in Columbus, and she has a teacher's way of asking a question she already knows the answer to.

"Mom," she said. "Where's yours?"

I had an answer for every question about Bev that week. Which bank. Which drawer. Which cousin had the key to the storage unit. I did not have an answer for that one.

Here's the truth, and I'll give it to you the way I gave it to myself that afternoon. I had settled my father's estate and my mother's since 2016, and Bev's was just getting started. The newest will in our house was dated 1996. It sat in a manila envelope in the cedar chest at the foot of our bed, under the Christmas tablecloth. It named my parents as Jess's guardians. Both of my parents were dead, and Jess was thirty-one.

Dale and I had no powers of attorney. No health care papers. No real idea, if I'm honest, who was listed as beneficiary on half our accounts.

Dale was standing in the doorway, drying a coffee mug. "She's got you there," he said.

Dale says about one sentence per crisis, and it's usually the right one.

This book is what happened next: the roughly six months it took the two of us to get from that envelope to signing day in May 2024, and the first yearly review after that. I took notes as we went, because I wanted Jess to have the map, and because I suspected we weren't the only couple with a 1996 will under a tablecloth.

Who's talking to you

My name is Ruth Calloway. I'm 61, and I live in a brick ranch on the edge of Chillicothe, Ohio, twenty minutes from the farmhouse I grew up in. For 27 years I kept the books for Dale's heating-and-cooling business, which means I know what a filing deadline feels like and I own more three-ring binders than anyone should.

I am not a lawyer, an accountant or a financial planner. I'm a daughter, a niece and a bookkeeper who learned this at kitchen tables, from three estates and a lot of hold music. My mother was a paralegal at a law office downtown, so I grew up hearing the word "intestate" over supper without knowing what it meant. Knowing the word didn't help me much later. Knowing what to do would have.

What I do know is what it costs a family when the papers aren't there. Mostly not money. Saturdays. Phone calls to people who need a form you don't have. The slow, particular misery of learning that something could have been fixed with one signature, by a person who can no longer sign.

You'll hear about Bev's savings account in Chapter 3. It still makes my jaw tight.

What's in here, and what isn't

People are told to "get their affairs in order." Nobody tells them what the order is. I think that's the most useless advice in this whole

business, and it's why so many of us own a folder marked IMPORTANT with nothing inside it.

So here is the order this book uses. You make the list first, and you sign last.

Chapter 1 covers what an estate plan actually is and what your state does if you never make one. Chapter 2 is the list. Then come the forms that quietly beat your will, the will itself, guardians for children, and the honest question of whether you need a living trust. After that, the two powers of attorney — one for money, one for your medical care — which do their work while you're still alive. Then passwords and phones. Then the families that aren't simple: second marriages, stepchildren, single people, a child who needs extra protection. Chapter 11 is about hiring a lawyer and walking in prepared. Chapter 12 is where to keep it all and how to look at it once a year. By the end you'll have a one-page review checklist, the same one Dale and I pull out every March.

Each chapter ends with something to do: a sheet to fill in, a script for a hard conversation, or a rule for making a decision. Use them. They're the part that turns reading into a plan.

Two things this book leaves out on purpose. If you've been named someone's executor and need to know how to do the job, that's *The Executor's Step-by-Step Guide*. If a parent has just died and you're facing the first weeks, set this book aside and pick up *The First 90 Days After a Parent Dies*. This one is strictly about your own plan, made while you're alive and thinking straight.

The honest limits

Most of estate law is state law. The rules on witnesses, on a spouse's rights, on what happens without a will, on what makes a health care form valid — they differ among Ohio, Arizona, and Pennsylvania, and they change. When a rule varies, I'll say so and tell you how to

check yours. When I use a number, I'll give its year and where it came from.

The facts in these pages come from places you can look up yourself: the IRS, the National Institute on Aging, the American Bar Association's estate planning pages, the Consumer Financial Protection Bureau, and state court self-help centers. My stories come from my family. The rules don't.

This is general information, not legal advice, and I'd rather show you what that means than repeat it at the bottom of every page. Where you need a lawyer, I'll tell you plainly, and I'll tell you why. Minor children, a blended family, property in two states, a business, an heir you mean to leave out, a relative likely to argue — those are lawyer territory. Where you probably can do something yourself, I'll say that too. Either way, a lawyer is worth a great deal more when you walk in with your homework done. I learned that from Sam, the lawyer in town who handled Bev's estate and later drew up ours. You'll meet him.

What no book can do is sign for you.

How to use this book

One chapter per sitting. That's roughly the pace Dale and I kept, on weeknights after supper, and it's the pace I'd recommend to anyone with a job and a life. You'll be tempted to read the whole thing in a weekend and then do nothing. I know, because that's how I've read most books about money.

Keep a pencil nearby. Write on the sheets. Cross things out.

And give the papers a home. Ours is a green accordion file in the second kitchen drawer, the one under the silverware. I bought it at the drugstore the Monday after Jess asked her question, and that night I moved the 1996 will out of the cedar chest and into the first pocket. It was the only thing in there. By May the elastic band was

straining. Every sheet in this book went into that file, and nothing came out to live anywhere else.

One more thing before you start. Some of what follows is about your own death, and about a stretch of time when you might not be able to speak for yourself. A few evenings will sit heavy. I won't pretend otherwise.

But I have sat on the other side of this, with my father's checkbook and my mother's shoebox, and I would much rather you did the hard part now, on purpose, than leave it for someone you love to do later in a hurry. That's what Jess was really asking. It wasn't morbid. She'd watched me do this for her grandpa, then her grandma, then Bev, and she wanted to know whether she'd be the one at the table next.

She will be, someday. The difference is whether there's anything on the table when she gets there.

Tonight's ten minutes

Before you open Chapter 1, take one sheet of paper. Not a notebook, not an app on your phone. One sheet. Write three headings and fill in whatever you can in ten minutes.

1. **Who depends on me.** Children, a spouse, a parent whose bills you pay, the brother who calls you before he calls anyone else, the dog. Anyone whose week would fall apart if yours did.
2. **What I think I own.** A rough guess, from memory. The house, the car, the checking account, the 401(k) from the job before last. Don't look anything up yet. Chapter 2 will show you how close the guess was.
3. **Who I'd call if I couldn't speak.** Not who you'd call to say you're sick. Who you'd want answering for you, about money and about your body, if you were in a hospital bed and couldn't. Write

a name. If no name comes, write that down too. It's the most useful blank on the page.

That sheet is the start of your plan. It goes in the front pocket, and everything else gets added behind it.

Get a folder that closes.

Chapter 1: What an Estate Plan Is, and What Happens Without One

Marlene came across the road on the second Saturday in December with a sour cream coffee cake in a foil pan and her reading glasses pushed up into her hair. She set the pan on my counter, right next to the green accordion file, which was open, with the 1996 will poking out of the first pocket and two yellow legal pads beside it.

“What’s all this?”

I told her. Bev, the envelope from the probate court, Jess at the table with her coat on.

Marlene cut herself a piece of her own coffee cake, which she always does, and said, “Well. Estate plans are for people with estates.”

She meant it kindly. She meant that she and I are not the Rockefellers. She has a paid-off house, a checking account, a Malibu with 140,000 miles on it and two grown children who call on Sundays. Nobody needs a lawyer for that. That’s what she meant.

I’ve heard some version of her sentence from at least a dozen people since. It’s wrong, and it’s wrong in a way that costs families months.

Here’s what I told her. Everybody has an estate plan. Every person in this country who owns a toothbrush has one. The only question is whether you wrote yours or your state wrote it for you.

Your state’s version already exists. It’s sitting in the statute books: who gets your house if you die without a will, who a judge appoints to manage your money if a stroke takes your speech, who the doctors turn to when you can’t answer them. Legislators wrote those rules for

a family they'd never met. Sometimes the default fits you. More often it fits the way a borrowed coat fits.

Marlene chewed on that, and on the coffee cake. "So who'd get my house?"

"I don't know," I said. "Neither do you. That's the whole problem."

I meant it. I've been through three estates at our county courthouse and I couldn't have recited the rule for a widow with two children and no will. It depends on the state, and the honest answer was that she'd have to look it up. What I could tell her was that she could find out, and that once she knew, she could change it.

Two jobs, not one

Most people hear "estate plan" and picture a will being read aloud in a room with wood paneling. That's half of it. In my experience it's the less urgent half.

A plan does two jobs. It says what happens to your things, and to your children, when you die. And it says who acts for you if you're alive but can't act for yourself: after a stroke, a car wreck, a fall on the basement stairs, or during a long illness that takes your judgment before it takes anything else.

People plan for the first job and skip the second. I understand why. A death is one event, and you can picture it. Incapacity is murky, it arrives without a date, and nobody wants to imagine being the one in the bed. But it's the job that tends to come due first. My mother needed someone who could legally sign for her two years before she needed anyone to read her will.

The American Bar Association's page on powers of attorney puts the risk plainly. Without one, a court may need to appoint a guardian or conservator to manage your affairs, and you may not get to choose who it is. Think about that for a minute. A court case, so somebody

can pay your electric bill. A judge deciding which of your children is the responsible one.

Write both halves.

The five pieces

There's no official list, and every lawyer arranges it a little differently. But in the three estates I've handled and the one plan Dale and I finally made, the core came down to the same five pieces of paper. I'll name each one here and leave the details to the chapters that own them.

A will. It names the person who will settle your estate, says who gets what passes under it, and lets you nominate a guardian for children who are still minors. It controls less than most people think, and Chapter 4 is about exactly how much less.

A durable financial power of attorney. This names someone, called your agent, who can handle money for you while you're alive: pay the mortgage, talk to the bank, deal with the tax return. "Durable" means it keeps working after you lose the ability to manage things yourself, which is the whole point of having one. The choices inside it are in Chapter 7.

A health care power of attorney and a living will. Two documents, sometimes on one form. The first names the person who makes medical decisions when you can't. The second writes down what you'd want them to decide. The National Institute on Aging calls these the two most common kinds of advance directive. Chapter 8 covers them.

Your beneficiary forms and account titles. You don't sign these in a lawyer's office. They're the pages on file at your bank, your 401(k) plan, your life insurance company, and the exact wording on your deed. They often move more money than the will does, and they don't care what the will says. Chapters 2 and 3 are about them. I

count them as part of the plan, not as bank paperwork, and by Chapter 3 you will too.

A letter of instruction and an inventory. Neither is a legal document. The inventory is the list of what you own and where it lives. The letter is plain English to the people you leave in charge: who to call first, where the spare key is, who takes the dog. Chapter 2 builds the inventory, and Chapter 12 puts the letter together.

You'll notice a living trust isn't on that list. That's on purpose. Some people need one, and plenty of people are sold one who don't. Chapter 6 helps you tell which you are.

When I read the five to Dale that night, he counted them off on his fingers.

"Five pieces of paper," he said. "I've done harder furnace installs."

He wasn't wrong. None of the five is hard to understand. The hard part is deciding, and then actually signing, and most people stall at the deciding.

What your state does if you don't

Here is the default plan, the one you already have. It comes in three pieces, and each is a different kind of trouble.

If you're alive but can't act

Say you have a stroke next March. You'll live, but for some months you can't read a bank statement or sign your name.

Your checking account doesn't know that. The mortgage still comes due, the property tax bill still arrives, and the bank will not let your husband or your daughter move money out of an account in your name alone because they love you and they're standing right there. Without a financial power of attorney, the path the ABA describes is a court: a guardianship or conservatorship, with a judge picking the person and, depending on your state, ongoing reports to

the court about how your money is spent. You might like the person the judge picks. You don't get to be asked.

Medical decisions work a little differently, and the default here can be gentler. According to the National Institute on Aging, if you don't have an advance directive, your state's law decides who speaks for you, and that's typically a spouse, parents or adult children. If you're married and your spouse knows your wishes, the default may roughly match what you'd choose.

But look at who isn't on that list. The NIA specifically warns that an unmarried partner who isn't named could be left out. I know a couple of people in their sixties who have been together twenty years and never married, for perfectly good reasons. Under that default, a sister in another state may have more say in a hospital hallway than the person who's been sleeping in the chair next to the bed. The same goes for a stepchild who's been doing the driving to appointments, or a close friend who knows exactly what you'd want.

The default also says nothing about what happens when three adult children disagree. They get to sort it out among themselves. In a hospital hallway. At two in the morning.

If you die

Without a will, you die "intestate," which is the word I heard over supper as a girl. It means your state's law of descent and distribution writes the will for you. The ABA's introduction to wills and Cornell Law School's Legal Information Institute both describe the same basic pattern: property typically goes to a spouse and children first, then to parents, siblings and more distant relatives, in an order your state sets. The shares and the order vary from state to state, sometimes a lot. That's why I couldn't answer Marlene.

Notice that the list is made of relatives. The ABA lists stepchildren, friends and charities among the people a will can provide for when intestacy wouldn't. If the person you'd want to have

the house is the stepson you raised from age six, or the niece who checked on you every Tuesday, the state's will usually doesn't know they exist.

Also notice what a missing will doesn't do. You haven't named anyone to settle the estate, so somebody still does the job; you just didn't pick them. And whatever you own by beneficiary form or joint title doesn't follow the will at all, will or no will, which is what Chapters 2 and 3 untangle. How an estate actually moves through probate court is a different book, *The Executor's Step-by-Step Guide*.

Marlene's other worry, the one she said with her fork in the air, was that "the state takes the house." It can happen, but it's narrower than she feared. Cornell's Legal Information Institute notes that if no relatives can be found, the property can pass to the state. For a woman with two children who call on Sundays, that wasn't her real risk. If what she actually meant was paying for a nursing home someday, that's Medicaid planning, a separate subject with its own rules, and the right person to ask is an elder law attorney, not me and not this book.

If both parents die and the children are young

This is the column I'd fill in first if I were you and had kids at home.

Your will is where you nominate a guardian for minor children, if you're the surviving parent; the ABA lists that among the things a will can do. A nomination isn't automatic. California's court self-help site, which I'll use as the worked example because it explains this so clearly, says a court decides who becomes a child's guardian even when a parent has nominated someone, after an investigator's report and a hearing. But the nomination is the strongest word you get. Without one, the judge starts with no word from you at all, and listens to whoever shows up.

Dale and I had a nomination. That was the embarrassing part. Our 1996 will named my parents as Jess's guardians, and both of

them were dead. If Jess had been eight that December instead of thirty-one, our will would have handed our child to two people in the cemetery on Route 50. A judge would have been choosing anyway.

Who to name, how to ask them, and how to keep the money you leave a child from needing its own court case are in Chapter 5.

The tax question, in proportion

When people finally sit down to do this, they usually come in worried about the wrong thing. Marlene was worried about two: the state taking the house, and taxes. Most of the people reading this can set the federal estate tax down right now.

According to the IRS page “What’s New — Estate and Gift Tax,” the basic exclusion amount for people who die in 2026 is \$15,000,000. That figure was set by Public Law 119-21, signed July 4, 2025. For 2025 it was \$13,990,000. Roughly put, an estate has to be worth more than that before federal estate tax comes into it at all. The figure is per person, it has changed several times in my adult life, and it can change again. When you read this, check the IRS page for the current year.

State taxes are a separate question, and this is where people get caught. Some states charge their own estate tax or inheritance tax, with rules that have nothing to do with the federal number. Pennsylvania is a clear example. According to the Pennsylvania Department of Revenue, as I checked it in 2026, its inheritance tax rate is 0 percent on what passes to a spouse, 4.5 percent to children and other direct descendants, 12 percent to brothers and sisters, and 15 percent to most other heirs. A Pennsylvania family that would never come near a federal return can still owe the state.

So do two things. Search your own state’s department of revenue website for “estate tax” and “inheritance tax,” and write down what you find, with the date. And if your estate is anywhere close to the

federal figure, or you live or own property in a state that taxes estates or inheritances and the amounts look real, that's a conversation for an estate lawyer and a CPA together. This is exactly the kind of question where they earn their fee, and where a book can't do the math for you.

For everyone else, here's my opinion. Taxes get the headlines because they make people nervous enough to buy something. In the three estates I've handled, not one owed a federal estate tax. What cost us was time: months of waiting, Saturdays of paperwork, letters that each needed a document we didn't have. The plan is mostly a defense against that.

Tell them before you sign

I promised myself I'd say this once in this book, so here it is.

Most family fights over estates start with silence, not greed.

I've sat through a lot of hard conversations across three estates. Exactly one of them was about money. Every other one started some version of the same way: "Why didn't anybody tell me?" Why is my brother the executor? Why does she get the house? Why did Mom sign that without asking us? People can live with a decision they don't like. What they can't stand is meeting it for the first time in a lawyer's office, after the person who made it is gone and can't explain.

So apply that to your own plan, while you're making it. Before you sign, tell the people you're naming what you've chosen and why. Tell the daughter you've named as your health care agent, and ask her if she can do it. Tell the son who isn't executor why his sister is, so he hears your reason in your voice and not in a letter. If you're leaving one child less because you already helped her buy a house, say so out loud, now, to both of them.

You don't have to read anyone your account balances. How much of the numbers to share is its own decision, and Chapter 12 gets into it. I'm talking about the choices. The names. The reasons.

Dale and I told Jess what we'd decided at Sunday supper, before we signed anything. She asked two questions. Then she asked for the gravy.

That's how it should go.

The “If I do nothing” sheet

This is the tool for this chapter, and it's how you find out what your state's plan is for you. Take one sheet of paper and make three headings across the top or down the page, whichever you like. Leave room under each.

1. **If I'm alive but can't act.** Who handles my money? Who makes my medical decisions?
2. **If I die.** Who gets what I own, in what shares? Who settles my estate?
3. **If I die and my children are minors** (or if both parents die). Who raises them? Who manages what they inherit?

Under each heading, write three short lines:

- **What my state does by default.** Use the answers from this chapter, then check your own state. Your state court system's self-help website and your state bar's consumer pages are good places to start. Searching “[your state] intestate succession” and “[your state] advance directive” will usually get you there.
- **Do I like it?** Yes, no, or I don't know.
- **Which of the five pieces changes it.** Will, financial power of attorney, health care documents, beneficiary forms and titles, or the letter and inventory.

That's it. It shouldn't take more than twenty minutes, and you don't need any account numbers yet.

Dale and I filled ours in that night after Marlene went home. Under "can't act," both of us wrote "a court" and "no." Under "if I die," we wrote "1996 will, out of date." Under the children column we wrote "Jess is grown" and moved on. If your kids are under eighteen, that column is the one to finish before you go to bed.

Every "no" on your sheet is a reason to keep going. Every "I don't know" is a question for Chapter 2, or for a lawyer when you get to Chapter 11. Put the sheet in the folder, right behind the one you made before this chapter.

No loose pages.

Marlene took a blank copy home, folded in quarters in her coat pocket. She left the rest of the coffee cake.

Chapter 2: Make the List Before You Make the Plan

The second Tuesday in January, Dale came in from a service call at six-forty with ice in the treads of his boots. He ate a plate of chicken and noodles. Then he sat down across from me at the kitchen table, because I'd told him that morning we were doing it that night.

I had a yellow legal pad and two pens. He had the look of a man who'd rather be changing a blower motor.

"This'll be quick," he said. "We don't own much."

Two hours and ten minutes later we had twenty-three lines.

Not twenty-three million dollars. Twenty-three *things*: accounts, policies, titles, the work truck still titled to Dale alone, a savings bond Dale's grandmother bought him as a boy that nobody had ever cashed. Some of the lines were worth four figures. One was worth about two hundred dollars and took the longest to pin down.

Dale went to bed annoyed. Not at me. At the list.

The guess and the list

Before Chapter 1 I asked you to write down what you *think* you own, from memory, on one sheet of paper. Go get that sheet.

Now put it next to a fresh one. The second sheet is the real one, and the gap between them is the reason this chapter comes before everything else in the book.

Here's the order of operations, and I'll defend it against anybody: you cannot decide who gets what until you know what you have and how each piece already moves. Most people start at the will. They sit

down to write who gets the house and the savings, and they never find out that the house and the savings were never going to follow the will in the first place.

That isn't a trick or a loophole. It's just how American property works, and almost nobody explains it before they sell you a form.

The only question that matters, asked twenty-three times

For every line on your list, ask one thing:

If I died tonight, what moves this to somebody — my will, the way it's titled, a beneficiary form, or a trust?

Four possible answers. I started calling it the "road," because every item you own is already on a road to somebody, whether you've looked at the map or not.

The American Bar Association's introduction to wills says it in flatter language. Property held jointly with right of survivorship, or payable on death, or covered by a life insurance policy or a retirement plan passes by title or by beneficiary designation. It does that regardless of what the will says, unless it's made payable to your estate.

Read that last clause twice. *Regardless of what the will says.*

Your will governs the probate road, and the probate road is narrower than people think. It carries property in your sole name with nobody effectively named to receive it, your own share of anything you own as tenants in common, and anything a form sends to your estate on purpose or by accident. For a lot of households that comes to the car, the furniture, the checking account they never put a beneficiary on, and not much else.

Two notes before you panic.

First, none of this is about taxes. Which road an item travels decides *who gets it and how fast*, not what's owed on it. Those are

separate questions with separate rules, and we put the federal tax question in proportion back in Chapter 1.

Second, this chapter is about your own things, while you're alive and can still change every answer. Sorting out which road a dead person's assets already took, and what an executor must then do, belongs to *The Executor's Step-by-Step Guide*.

You're on the easy side of this. You can still edit the map.

The four roads, in plain English

Here's each one, with the kind of thing that travels on it.

Sole name, nobody named

A checking account with only your name on it. A car titled to you. The coin collection. A savings bond in your name with no co-owner. A house deeded to you alone.

This is probate property. It goes where your will sends it. If you have no will, your state's rules send it, which is where Chapter 1 came in.

Joint ownership

Two people on the same thing. This is where the exact words matter, and where I see the most confusion.

Joint tenants with right of survivorship means that when one owner dies, the other owner owns the whole thing, automatically, by operation of the title itself. The will does not get a vote. Dale and I own our house this way, and our main checking account.

Tenants in common means each owner has a share, and when one dies that share goes into their estate, to be handled by their will. Same two names on the paper. Completely different outcome.

The deed or the account card says which one you have, and it does not always say it the way you'd expect. Don't guess. Go read it.

There's one more joint arrangement to flag tonight and not solve tonight: an adult child added to your account so they can help with the bills. If there's one in your house, write ASK beside that line and keep going. Chapter 3 is where I explain what it actually does and what to use instead.

Community property

If you live in a community property state, the rules about what belongs to whom during a marriage are different from what most people assume, and that feeds into what you can leave.

According to IRS Publication 555, revised December 2024, the community property states are Arizona, California, Idaho, Louisiana, Nevada, New Mexico, Texas, Washington, and Wisconsin. Alaska, Tennessee and South Dakota have an opt-in election. That's twelve places where this matters, and if you're in one of them, write that at the top of your list.

Ohio isn't one, so Dale and I set it aside. If you're in Texas or California, don't. Ask about it specifically when you get to a lawyer, and say the words "community property" so they know you know.

A beneficiary form

A retirement account. A life insurance policy. An annuity. A bank account marked POD, payable on death. A brokerage account marked TOD, transfer on death. In many states, even a deed can be set up to transfer on death — the rules vary a lot, so check your own state before you count on it.

All of these move by a form on file at the institution. Not by your will. Not by fairness. By the form.

Those forms, and the mistakes buried in them, are Chapter 3, which is the chapter I'd read twice if I only had time for two.

A trust

If you have a living trust, it controls exactly what's been retitled into it, and nothing else. A trust with your name on the cover and an empty inside does nothing at all. Whether you need one, and how funding works, is Chapter 6.

Most readers can write "no trust" on every line and move on. Write it anyway. The blank is the thing that nags at you later.

Where to find the truth

Here is the part people skip. You do not fill in the "how is it titled" column from memory. Not yours, not your spouse's, and not from a lawyer's file drawer from 1996.

The house and any other real estate. The deed. Your county recorder's or auditor's office holds it, and a lot of counties let you search by name online for free. You want the vesting line — the sentence naming the owners — copied onto your list word for word. If it says "husband and wife," or "joint tenants with right of survivorship," or just two names with "and" between them, those can mean different things. Copy it exactly and let the lawyer tell you what it means.

Bank accounts. Call or go in and ask for two things: the exact title on the account, and the name of any payable-on-death beneficiary on file. Ask for it in writing. "In writing" means an email, a printed screen, or a signed form — something you can put in the folder. The teller's memory and yours are both worthless in nine months.

Retirement accounts. The beneficiary page lives with the plan administrator or the custodian, not with your employer's HR

department and not in your filing cabinet. Most 401(k) and IRA providers will show it to you online in about four clicks. Old plans from old jobs are the problem, and we'll get to ours in a minute.

Life insurance. The policy itself, plus a confirmation from the insurer of who's currently named. Group coverage through work counts, and so does the small policy your parents took out on you when you were nine, if it's still in force.

Vehicles, boats, trailers. The title. Your state's motor vehicle agency can tell you what's on it and whether your state allows a beneficiary to be added.

Everything else. Savings bonds, the HSA, the brokerage account you opened during the pandemic, the certificate of deposit at the credit union, the mineral rights your grandfather left, the timeshare, the business, the storage unit.

Ask for it in writing.

What isn't yours

Two items came off our list that night, and I want you watching for the same thing on yours.

The first was Aunt Bev's storage unit, which I was unwinding as her executor. The second was a savings bond my mother bought Jess in 1994. That bond had been Jess's since the day it was issued. Both had been filed in my head under "things I have to deal with," and that is not the same category as "things we own."

So I started a second sheet and gave it a heading I'd recommend to anybody: *not ours*. Property you happen to be handling for somebody else is a job, not an asset, and a job belongs on a different piece of paper. Mixing the two is how people end up leaving things in a will that were never theirs to leave.

Keep the sheets apart.

The one we almost missed

We were at line eighteen when Dale said, “What about the supply house?”

Before he started his own business, Dale worked eleven years at a heating-and-cooling supply house in Columbus. When he left, somebody rolled his retirement money into an IRA at a brokerage firm. That was 2003. Neither of us had thought about it since, except as a statement that came in the mail once a year and went straight into a drawer with the car insurance.

It took us forty minutes to find the account number, and we found it on an old tax document, not a statement.

It became line nineteen. And the question of whose name was on the beneficiary page of a form Dale signed in 2003, back when his mother was alive and Jess was in grade school, is exactly the kind of question Chapter 3 is about. I’ll only say that we didn’t like the answer, and that fixing it took one phone call and eleven minutes.

Twenty-one years of not looking. Eleven minutes to fix.

If you take nothing else from this chapter: the account you haven’t thought about is the account with the problem.

Debts go on the list too

An inventory of only the good things is half an inventory, and it’s the half that makes life harder for whoever comes after you.

Write down what you owe and to whom: the mortgage, the home equity line, the car loan, the credit cards, the medical bills on a payment plan, student loans — including any you took out for a child. Note which ones are in your name alone and which are joint with your spouse, because that distinction will matter to someone someday.

Then add a short section at the bottom that isn’t about money at all. Call it “who to call.” The insurance agent. The accountant who

does your return. The guy at the credit union who knows you. The number for Dale's business bookkeeping software, which I promise you nobody else in this family could find.

That part took me nine minutes and it may be the most useful nine minutes in this book.

Nobody can do this for you

I want to be straight about something, because the rest of this book sends you toward professionals and I don't want you waiting on one.

A good lawyer will draft documents you couldn't write yourself. A financial advisor can tell you things about your accounts that I can't. Neither of them can make this list. They don't know about the credit union CD. They don't know your father-in-law co-signed the truck. They can only work from what you hand them, and if what you hand them is incomplete, you will get a careful, well-drafted plan with a hole in it.

This is the one piece of the work that is entirely yours. It's also the piece that makes everything after it faster and cheaper, because a lawyer billing you by the six-minute increment should be spending those increments on decisions, not on asking you where you bank.

Make the list first.

The asset map

Here's the tool. One line per item, five things across the page. Use a legal pad, a spreadsheet, whatever you'll actually keep up. We used the legal pad, then I typed it, then I printed it, because paper is what gets found.

1. **What it is.** "Checking account," "the house," "Dale's rollover IRA," "term life through the union."

2. **Where it is.** Institution and the last four digits of the account, or the county and parcel number for land. Never write full account numbers on a sheet that lives in a kitchen drawer.
3. **How it's titled.** The exact words, copied from the deed, the title or the account record. If you don't know yet, write "ASK" and the date you plan to ask.
4. **Who gets it if I died tonight.** A name, not a wish. "Don't know" is a legitimate entry and a loud one.
5. **The road.** Will, title, beneficiary form, or trust. One word.

Then three lines at the bottom of the page: today's date, who helped you make it, and where the backup copy lives.

Here's what to expect, because it happened to us and it'll happen to you. Your first pass will have "ASK" in column three on about a third of the lines, and "don't know" in column four on more than you're comfortable with. That's not failure. That's the list doing its job. Ours took three sittings across two weeks to finish, and one of the lines wasn't settled until April.

Update it once a year. Where it lives and how to keep it current is Chapter 12, and the short version is that it goes in the green file with everything else.

One more thing, and then go get the legal pad.

Dale was annoyed that night, and he was right to be. Twenty-three lines is more than "we don't own much," and a fair number of them were pointed at the wrong person or at nobody. We'd been married thirty-six years at that point and we'd never once laid it all out on one page.

Three weeks later he took the list to the garage, where he keeps his good light, and read it again by himself. When he came back in he said, "We should've done this at forty."

Start yours with the line you're least sure about.

Chapter 3: The Forms That Beat Your Will

The woman at Bev's bank turned her monitor so I could see it.

It was Wednesday, December 6, 2023, fifteen days after we buried my aunt. I was there on estate business, and the executor's side of that visit is covered in *The Executor's Step-by-Step Guide*. What belongs here is one line on that screen. Bev's savings account, the one she'd kept at the bank downtown since before I could drive, had a payable-on-death beneficiary on file.

Uncle Roy.

Roy died in 2011.

That account went into probate. With nobody alive on the form, there was no one for the bank to pay, so the money dropped into Bev's estate alongside everything else she owned in her own name. The estate took fourteen months to close. That savings account waited the whole time, in line with the furniture.

It wasn't a fortune. It was most of the cash Bev had. And if she had gone back to that bank any afternoon in the twelve years after Roy's funeral and written one living name on one card, the money would have gone straight to that person, outside the court, the way the form is built to work.

Bev was not careless. She paid her bills the day they came. She just never thought of that card again, and nobody asked her to.

It's maddening, and I can't fix hers. You can fix yours.

The form wins

In Chapter 2 you sorted every line on your list by road. This chapter is about the road that carries the most money in most households I know, and the one people check the least.

Here's what travels by beneficiary form: life insurance, including the group policy through work. A 401(k) or 403(b). An IRA, traditional or Roth. Annuities. A bank account marked payable on death. A brokerage account marked transfer on death.

The ABA's wills primer puts the rule plainly. These assets pass to whoever is named on the designation, and the will has no say, unless the designation sends them to your estate. I'll come back to that exception, because people trip on it.

What this means in a kitchen is blunt. Say your will leaves everything to your three children in equal shares. Say your 401(k) still names only your oldest, because she was the only one born when you started that job. If that designation is valid under the plan — which for a married participant usually means a signed spousal consent is on file, and I'll come back to that — your oldest gets the 401(k). All of it. The will can't reach over and even things out, and your other two children can't make her share. She might choose to. That's a different thing.

A will is a set of instructions for a court. A beneficiary form is an instruction the institution has already agreed to follow, and it follows it without asking anyone what you meant.

When Dale and I counted, nine of our twenty-three lines traveled by form. Apart from the house, those nine lines held most of what we had. I'd always assumed the will was the main event.

It wasn't even close.

First in line, and the backup

Most forms ask for two kinds of people.

The *primary* beneficiary gets the money when you die. The *contingent* beneficiary gets it only if every primary beneficiary has died before you. Bev's form had a primary and nothing underneath. One name, and when that name was gone, the form had nothing left to say.

Name a backup.

If you split among several people, write percentages, and make them add to 100. I've seen a form with three names at 33 percent each, and I've seen one with two names and no numbers at all. Both will get sorted out eventually. Neither should have to be.

Then there's a box a lot of forms offer and a lot of people skip: *per stirpes*. Cornell Law School's Legal Information Institute defines it as "by branch." If a beneficiary dies before you, that person's share goes down their branch of the family to their heirs, instead of being split among the other people on the form.

Here's the picture. You name your three children equally, *per stirpes*. Your son dies before you do. His third goes to his children. Without that box, depending on how the institution's form works, his third may be divided between his two sisters, and his kids get nothing from that account.

Neither answer is wrong. They're just different families. Decide which one you want, and then find out what your institution does if you leave the box empty.

Ask for its answer in writing.

One caution before you check the box everywhere: if those grandchildren are small, *per stirpes* can hand money to a toddler. That runs straight into the first trap below.

Four ways good intentions go wrong

None of these come from greed or carelessness. Every one comes from somebody trying to be kind or trying to keep it easy.

Naming a child under eighteen

A minor can be named and can inherit. What a minor usually can't do is manage the money alone. The ABA's introduction to wills, in its section on life insurance, says a policy paid directly to a minor child generally needs a court-appointed guardian or conservator to handle it. That means a court, a process, and somebody reporting to a judge about your grandson's college money.

The usual fix is to name a trust for the child, or a custodian under your state's transfers-to-minors law, instead of the child directly. Which one fits your family, and how parents set it up, is Chapter 5. For now, if you find a child's name in the primary or contingent line of any form, write "ASK" beside it on your audit sheet.

Naming "my estate"

This is the exception I promised. When a form names your estate as beneficiary, the money stops traveling by form. It goes into the probate estate and follows your will — or your state's intestacy law, if you don't leave a valid will — and it goes through the court with everything else, which is where Bev's savings ended up by accident.

Some people do it on purpose because it feels tidy: one document, the will, controls everything. I understand the instinct. But you've just taken an asset that could have skipped the court and sent it through the court. Unless a lawyer has given you a specific reason for your situation, name people.

You'll see in a minute that we had one of these and didn't know it.

Naming one child to "share with the others"

I've heard this one at more kitchen tables than any other. "I put Karen on it. She'll split it with her brothers. She's the responsible one."

She may well be. But once the money is in Karen's name, it is legally Karen's. Nothing makes her share it. And even if she wants to, her own life gets a vote: her debts, her marriage, a bad year. There's also paperwork. The IRS puts the annual gift exclusion for 2026 at \$19,000 per recipient. If Karen hands one brother more than that in a year, she's generally into gift tax return territory, Form 709, and a conversation with a tax preparer. Tax actually owed is unlikely for most families, but she'd be doing federal paperwork for the favor you asked of her.

If you want three children to get equal shares, put three names on the form.

Adding a child to the account “for convenience”

Chapter 2 flagged this one. Here's the full warning.

When you add your daughter to your checking account as a joint owner with right of survivorship, you haven't filled out a beneficiary form. You've changed the title. And titles beat wills the same way forms do. When you die, the account is hers. The ABA's introduction to wills notes that these convenience accounts often lead to family disputes and can defeat the plan in the will.

Most people who do this want two separate things and use one tool for both. They want someone to help pay the bills while they're alive, and they want the account to pass without fuss when they die.

Split the jobs. For bill-paying, a durable financial power of attorney gives your helper access without making the money hers; that's Chapter 7. For passing the account, a payable-on-death designation naming every child you mean to include does what the joint title was supposed to do, and does it evenly.

If you already have a convenience account, don't rip it apart tonight. Write it on your list with the exact title words, and bring it to the lawyer.

If you're married

Two wrinkles, both important, neither one you can fix with a pen at the kitchen table.

First, some workplace retirement plans don't let you name whoever you like. The ABA notes that for certain retirement plans and spousal annuities, the law requires the surviving spouse to be the beneficiary, and that right can be waived only with the spouse's properly signed consent. The IRS says the same thing from the plan's side, on its page about the qualified joint and survivor annuity. A married participant in a qualified plan gets that form of benefit unless the participant and the spouse consent in writing to something else. And the plan has to have a plan representative or a notary witness the spouse's signature.

A signature at your kitchen table, by itself, may not be worth anything. If you've named anyone other than your spouse on a 401(k) or a pension, call the plan administrator and ask three questions: does this plan require spousal consent, is a signed consent on file, and was it witnessed the way the plan requires? Get all three answers in writing.

Note which account you're asking about. The IRS page is about qualified workplace plans, and an IRA is not one of those, so don't assume the same protection rides along when money gets rolled out of a 401(k) into an IRA. If that's your situation and you're naming someone other than your spouse, ask a lawyer in your state.

Second, if you live in one of the twelve community property places listed in Chapter 2, your spouse may already own part of an account that's in your name alone, and a form naming someone else can run into that. This is a question for a lawyer licensed in your state.

And if you've been divorced: some states automatically cut an ex-spouse out of a will after a divorce. Do not count on that happening on a beneficiary form. The money side of divorce is its own book, *Gray Divorce After 50*, and I'll leave it there.

A word about the bank's insurance limit

This won't apply to most readers, but it's worth one paragraph because the rule changed recently and the old version still floats around.

According to the FDIC's "Your Insured Deposits" brochure, since April 1, 2024 trust accounts at an insured bank, including payable-on-death accounts, are covered at \$250,000 per owner for each *eligible, distinct* beneficiary. The ceiling is \$1,250,000 per owner at that bank, for all trust accounts combined.

Those two words are doing real work. Eligible, in the FDIC's brochure, means a living person, a charity or a non-profit organization. Distinct means each person counts once per owner, no matter how many of that owner's accounts at that bank name them. So one owner with a savings account naming three children could be covered up to \$750,000 at that bank. Name the same three children again on a second account at the same bank and you've added nothing. Name a sixth person and you've added nothing past the \$1,250,000 cap. The account itself also has to meet the FDIC's requirements. For an informal payable-on-death account, that means the beneficiaries are named in the bank's own deposit account records.

One more line from that brochure, because it surprised me. If a beneficiary of a payable-on-death account dies, there's no grace period; coverage usually drops right away.

If your balances are anywhere near those numbers, read the FDIC brochure yourself and talk to your bank. If they aren't, set it aside.

When to stop and call a lawyer

Most beneficiary forms are a phone call or a login. A few are not, and I'd rather you pay for an hour than guess.

Get a lawyer before you sign the form in four situations. You want to leave a retirement account to a trust. A beneficiary has a disability and may rely on government benefits. You're in a second marriage with children on either side. Or you're in a community property state and want to name someone other than your spouse. In each of those, the box you check has legal and tax effects that the form will never explain to you, and the institution's phone representative usually won't.

Write those down for Chapter 11.

What Dale's form said

Back to line nineteen.

The last Thursday in January 2024, Dale and I sat at the kitchen table with the brokerage's customer service number and his old rollover IRA statement. The representative read us the beneficiary page from 2003.

Primary: me. Fine.

Contingent: Dale's mother.

She died in 2015. If I had died before Dale, and then Dale had died, that IRA would have had a form with nobody alive on it — exactly Bev's situation, and the brokerage's fine print deciding what happened next. I did not want Jess reading fine print in a lawyer's waiting room.

"Mom's been gone since 2015," Dale said. That was the whole of his comment, and it covered it.

The representative walked Dale through the change on the brokerage's website while we stayed on the line. Me as primary, 100 percent. Jess as contingent, 100 percent. Eleven minutes, start to finish, including the hold music. We printed the confirmation screen before we hung up, and a confirmation letter came in the mail eight days later. Both went in the green file.

That was one of nine. Seven more were fine once we saw them in writing.

The ninth was Dale's term life policy, bought from an agent in 1998. Primary: me. Contingent: "estate of the insured." Neither of us remembered choosing that. My guess is the agent filled it in to get the form finished. The insurer wanted a paper change form, signed and mailed. Dale signed it at the kitchen table on a Saturday morning, and the confirmation came the first week of February.

Two wrong out of nine. Both written by younger versions of us, in good faith, about a family that had changed since.

The beneficiary audit

Here's the tool. It turns the "beneficiary form" lines on your asset map into a short project you can finish in a couple of weeks of evenings.

1. **Pull every form-road line from your asset map.** Life insurance, retirement accounts, annuities, POD and TOD accounts.
2. **Ask each institution for the current designation, in writing.** A printed screen or a letter. Not your memory, and not the summary page that shows only "beneficiary on file."
3. **Read it slowly.** Check the spelling of every name, that the percentages add to 100, that a contingent is named, and whether per stirpes is checked.
4. **Change it the institution's way.** Online, by phone or on their paper form. A note in your will doesn't change it. A letter to your lawyer doesn't change it.
5. **Keep the confirmation.** File it in the green folder, right behind the asset map.

Then keep one sheet, one line per form, with these headings:

- Account (institution and last four digits)
- Primary beneficiary and share
- Contingent beneficiary and share
- Per stirpes: yes, no, or ASK
- Date of the last change
- Confirmation filed (date and where)

The “date of the last change” column is the one that tells you the most. Ours had 2003 and 1998 in it. If yours has a year that starts with 19, start there.

When to look again

A form is only as current as the last time you touched it. Pull the audit sheet out whenever one of these happens:

- Anyone named on a form dies
- You marry, or a beneficiary does
- A divorce, yours or a beneficiary’s
- A birth or adoption in the family
- A beneficiary runs into money trouble or a serious illness
- You open a new account or change jobs
- You move to another state

Chapter 12 puts this sheet on the yearly March list too, so it gets looked at even in a year when nothing happens.

Bev’s card outlived Roy by twelve years. Somewhere in your files there’s a form with a name on it you haven’t thought about since the year you signed it.

Find the oldest one. Call that one first.

Chapter 4: Your Will: What It Does and What It Can't

My father's will was three typed pages in a blue paper cover, stapled once in the top left corner. I read it at my mother's kitchen table on a weekday afternoon in 2016, with Helen across from me not reading it, and Kevin on a plane from Tucson.

Page two, about a third of the way down, there was a line I still think about.

"I give my Buick to my son, Kevin."

Dad sold that Buick in 2009. He sold it to a man who went to the same church, for less than he should have, and he was pleased with himself about it for a week.

The will was signed in 1994. He died twenty-two years later. In between, he sold the car.

So the line did nothing. There was no Buick. The sentence sat there on page two, legally harmless, and it wasn't harmless at all, because Kevin got off that plane and read it and decided something. He decided that a car had gone missing, or that Dad had changed his mind about him, or that somebody should have told him. I'm not sure which, and I'm not sure he was either. He asked me twice that week whose name the Buick had been in.

Twenty-two years is a long time for a piece of paper to sit in a drawer while the world rearranges itself around it.

What your will actually reaches

You already know the shape of this from Chapter 2. The road a will controls is a narrow one, narrower than most people assume.

The ABA's wills primer puts the boundary in one sentence: your probate estate consists only of the assets subject to your will, or to your state's intestacy laws if you don't have one. The accounts and policies that travel by form, which were Chapter 3, are somewhere else entirely. So is anything held jointly with a right of survivorship.

This is why I put the will fourth in this book instead of first.

A will is still worth doing. It does several things that no form, no title and no trust will do for you. But if you came here expecting the will to be the document that settles everything, lower that expectation now, tonight, while you can still act on it.

What only a will can do

Here is the honest list, drawn from that same ABA page.

It names your executor. Somebody has to be in charge. If you don't name a person, a court picks from whoever steps forward. The ABA also notes that in your will you can relieve your executor of the bond requirement, and that in some states naming an independent executor, or waiving certain state statutes, cuts down how much the court supervises the settlement of your estate. That's a real saving of time and friction, bought with one sentence drafted by a lawyer who knows your state.

It nominates a guardian for children still at home, where you are the parent who outlived the other one. The nomination is not the same as the appointment, and the whole subject — who to pick, how to ask them, how to keep a child's money from the court — is Chapter 5. Don't try to solve it from this chapter.

It gives things to people the state would skip. Intestacy rules follow bloodlines and marriage. They don't know about your

stepson who's been yours since he was four, your godchild, your neighbor who drove you to every appointment for two years, or the animal shelter on the county road. The ABA names stepchildren, godchildren, friends and charities specifically. If any of those are in your plan, they're in your plan because you wrote them into a will.

It says who gets the rest. The residue is the part people forget and the part that matters most. More on that in a minute.

It can create a trust at your death, which is how parents keep a child's inheritance out of a teenager's checking account. That's Chapter 6.

It can name a successor custodian for a child's or grandchild's transfers-to-minors account, so a court doesn't have to appoint one.

Five of those six are invisible. They don't feel like they're worth the trouble, right up until the day somebody needs them.

Write gifts that survive twelve years of your life

Dad's Buick line is the most common mistake in homemade wills, and I've seen versions of it in lawyer-drafted ones too. You name a thing. Then your life goes on and the thing doesn't.

Four rules I'd give anybody.

- 1. Give percentages and shares, not objects, for anything that matters financially.** "Forty percent of the residue to my daughter" works whether the money is in a credit union, a brokerage account or a coffee can in 2041. "My Buick to Kevin" works for exactly as long as you own a Buick.
- 2. Define the residue and then look at it hard.** The residue is everything left after the specific gifts, the debts and the expenses. For most households it's the great majority of the probate estate. If your will spends two pages on the silverware and one line on the residue, you've written the wrong will.

3. **Name a backup taker for every gift.** What happens if the person you named dies before you do? A well-drafted will answers that for each gift and for the residue. If yours doesn't, state law answers it, and state law has never met your family.
4. **If you do name an object, say what happens when it's gone.** A lawyer can draft the gift so that it quietly disappears, or converts to a dollar amount, or passes to the next person in line, if you no longer own the item at your death. Say what you want out loud at the meeting and let the drafting handle it.

For the furniture and the jewelry and the tools, the ABA says that in some states a will may refer to a separate memorandum covering tangible personal property, which you can change without re-signing the whole will. It also says to proceed with caution, because a memorandum that contradicts the will, or gets written sloppily, creates the exact confusion it was meant to prevent. Ask whether your state allows one. Then ask your lawyer whether, for your family, it's a good idea.

Those are different questions. People who ask only the first one end up with an unsigned list in a drawer and two siblings who both remember being promised the dining table.

Choosing your executor

The job, in one sentence: gather what's in the estate, pay what's owed, file what the court and the tax people require, hand out what's left, and report on all of it. For the full picture of what you're asking of somebody, I wrote a separate book about that side of it, *The Executor's Step-by-Step Guide*.

What you need from this chapter is how to pick.

Organized beats smart. Available beats far away. Willing beats obligated. The best executor I've watched work was a retired school

secretary who had never owned a stock in her life and who kept a spiral notebook with the date and outcome of every phone call she made. The worst was a genuinely brilliant man who could not make himself open the mail.

Two more things.

Don't default to the oldest child because they're the oldest child. Birth order is not a qualification, and picking that way sets up the one sibling who was never asked to resent the one who was never given a choice.

And ask the person. Out loud, in a conversation, before you sign. I've never heard of anybody being offended by the question. I've heard plenty of stories about people finding out at the funeral home that they were in charge.

Then name a backup, because people get sick, move, and die in the wrong order.

Leaving your spouse out may not do what you think

This one surprises people, so here it is flat.

In many states, leaving a spouse out of your will does not necessarily disinherit them. State law may let the surviving spouse claim a statutory share, so take this plan to a lawyer licensed in your state. The ABA puts it this way: your right to dispose of property as you choose may be subject to forced heirship laws of most states that prevent you from disinheriting a spouse and, in some cases, children. Many states do it through what's called a spousal right of election, which lets the surviving spouse claim a certain interest in your estate regardless of what your will provides.

Cornell Law School's Legal Information Institute, in its July 2024 entry on the elective share, says these statutes exist to prevent the disinheritance of a spouse and give the survivor a fixed fraction,

typically out of the deceased spouse's probate estate. It adds that the traditional fraction is one-third regardless of the length of the marriage, and that elective share statutes are enacted in separate property states. Your state's fraction may be different, and what it is measured against may be different too.

If you live in one of the community property states or opt-in states listed back in Chapter 2, the analysis starts somewhere else again, because part of the property may already be your spouse's during the marriage.

Here's what I want you to do with that. If your plan involves leaving a spouse less than everything — which is normal and often sensible in a second marriage — that is a lawyer conversation, not a form conversation. Same if you intend to leave an adult child out. Leaving someone out without discussing the reason with your lawyer can invite questions or a challenge. Tell the lawyer who you're leaving out and why, in plain words, at the first meeting, and let them tell you what your state allows and what the drafting should say.

Second marriages and stepchildren have their own chapter, Chapter 10, because the whole picture there is different.

Signing it is not a formality

This is the part that makes a will a will, and the part people rush.

Wills must be signed in the presence of witnesses, with the formalities followed, or the ABA says the will may be invalid. Not “may be questioned.” Invalid. And it adds something worth sitting with: even when a badly executed will is eventually held up, fighting that challenge can be costly and difficult. The cheap fix is to sign it correctly the first time.

The number of witnesses and who may serve varies by state. Look yours up, or have the lawyer's office run the signing, which is what

they do all day.

In many states, the ABA says, a will executed in front of witnesses with all the signatures notarized is “self-proving,” meaning it can go to probate without hunting down a witness years later to testify. If your state offers that, take it. The witnesses to my parents’ 1994 will were a neighbor and a woman from Dad’s shop, and by 2016 one had died and the other had moved to Florida.

Changing a will later: a codicil is an amendment, and it has to be signed with the same formalities as the will itself. The ABA warns that a codicil creating ambiguity with the will it amends causes problems. My opinion, and I’ll own it: for most people, most of the time, a new will is cleaner than a patched old one, because there’s one document instead of a document plus a sheet of paper that has to be found with it. Ask the lawyer to quote both options before you decide.

About handwritten wills, because somebody always asks. Cornell’s Legal Information Institute explains that a holographic will is written and signed in the testator’s own handwriting and, by definition, doesn’t need witnesses. It also says some states don’t recognize them at all, and that the requirements vary a great deal where they do. Their own examples make the point. Texas requires the will to be written wholly in the testator’s handwriting. Utah accepts one if the signature and the material portions are handwritten. New York recognizes it only from armed forces members in actual service during a conflict, people serving alongside them, or a mariner at sea.

Read that spread again. Three states, three different answers.

So don’t rely on a handwritten will. Some states reject it outright, and the states that accept it impose different requirements, which means the page you write at the kitchen table on a bad night may turn out to be no will at all. Follow your state’s signing rules, or have a lawyer in your state run the signing.

Whether you need a lawyer at all for the will itself, and how to keep that bill down, is Chapter 11. One line here: this is the document where I'd spend the money.

The will decision sheet

Here's the tool. It's one page, and it exists so that your first meeting is about judgment instead of data entry. Write it in pencil. Argue about it with your spouse at the kitchen table, not in front of a lawyer at six-minute increments.

1. **Executor, and backup.** Full name, relationship, city, phone. Note whether you've asked them yet, and the date you did.
2. **The residue, in percentages.** Who gets the rest, and how much each. The numbers must total 100.
3. **Backup takers.** For each person above: if they die before me, their share goes to _____. Their children? The other people on the list? Say it.
4. **Specific gifts.** Keep this list short and keep it off the money. For each one: the item, the person, and what happens if I no longer own it.
5. **People intestacy would skip.** Stepchildren, a partner you're not married to, friends, charities. Names and what you want them to have.
6. **Anyone you mean to leave out,** and one sentence on why. This sheet goes to the lawyer. It does not go in the will unless the lawyer says it should.
7. **Guardian nomination,** if you have minor children. Leave it blank for now and come back after Chapter 5.

Then the three lines that go at the bottom of every sheet in this book: today's date, who you worked on it with, and where the copy lives.

Dale and I did ours on the first Sunday in February 2024, after the beneficiary forms were sorted and before the rest of it. Forty-five minutes, and forty of them were spent on item three, because we had never once said out loud what should happen to Jess's share if Jess died before us. It turns out we agreed. We just hadn't known that.

Put the sheet in the folder behind the beneficiary audit.

* * *

I never did answer Kevin's question about the Buick properly. I told him Dad sold it in 2009 and showed him the line in the checkbook register, and he nodded, and that was the end of the words about it.

A few months later he said something on the phone that I've kept. He said the car wasn't the point. The point was that a sentence written when he was twenty-six had been sitting in a drawer telling him something that stopped being true when he was forty-one, and nobody, including Dad, had thought to go back and look.

Go look at yours.

And if you don't have one to look at, start the decision sheet with item one: write down who's going to be in charge, and who's second.

Chapter 5: If You Have Children: Guardians and Money for Minors

Owen went down at seven in the porta-crib in the back bedroom, the one that used to be Jess's, and came awake twice before nine. It was a Saturday in February 2024. Marcus had made two trips to the car for the diaper bag and the sound machine and the particular blanket.

We were at the kitchen table with the last of the pot roast pushed to one side when Jess said they'd finally done their wills. A lawyer in Dublin, a Tuesday evening appointment, both of them in work clothes.

I said good. I meant it.

Then she said, "We named Tanya."

Tanya is Marcus's sister. She lives in Hilliard, eleven minutes from their house. She has two kids, eight and five, in the same school district Owen would start in.

I want to be straight with you about the next four seconds, because this chapter is not useful if I pretend. I felt it in my chest. Not anger. Something smaller and worse than anger, the thing you feel when you find out you weren't the obvious answer to a question you didn't know had been asked.

Dale, drying his hands on the dish towel, said, "She's closer to the school."

And he was right, and I knew he was right before he finished saying it. I was fifty-nine that February. Owen was two. If something took both Jess and Marcus the following year, I'd have been sixty at the start of it and seventy-five on the day he finished high school, and Dale would still have been crawling under furnaces to pay for

whatever came after. Tanya was thirty-four. Tanya's kids would walk Owen to the bus stop.

I told Jess she'd picked right. It took me about a day and a half to stop feeling the other thing, and I'm not sure I'd have managed it at all if she hadn't thought to ask me to be the backup.

Ruth and Dale's own will decision sheet from the week before had item seven left blank, because our child is a grown woman who teaches seventh-grade science. So this chapter isn't our story. It's the one I'd have wanted at thirty-two, and the one Jess read a draft of.

Two jobs, and nobody says they're the same person

The word "guardian" is doing two different jobs, and families lose whole arguments to that confusion.

The California Courts self-help guide lays out both plainly, and I'm using California as a worked example all the way through this chapter because its courts publish the process in public and in English. Your state will differ. Go find your own state court's self-help pages before you sign anything.

A **guardianship of the person** means an adult who isn't the child's parent has the legal right to make decisions about that child's life and the responsibility for their care: medical decisions, what school they go to, housing, food, clothes, safety. That's the person who raises your child.

A **guardianship of the estate** means someone is appointed to manage the child's money. California's guide says this one is needed when a child has a lot of money, income or property — for example, money inherited from a parent who died. It also says guardianships of the estate have very strict rules about how the money is handled, what lawyers call fiduciary duties, and that it's usually best to have a lawyer's help with one.

Read those two paragraphs again and notice they describe different skills.

The sister who will get up at two in the morning with a feverish eight-year-old is not automatically the person you want filing an annual accounting with a probate judge. Sometimes she is. Often she isn't, and that's not an insult to her. You can name different people for the two jobs. Most families don't realize they're allowed to.

You nominate, and then a judge appoints

Your will nominates. That's the actual verb, and the gap inside it matters.

The ABA's introduction to wills says you may designate a guardian for your minor children if you are the surviving parent, and that doing so minimizes court involvement in the care of your child. Minimizes. Not eliminates.

Here's what the court side looks like, again using California's published process. Someone files a petition and pays a filing fee. California's detailed filing instructions listed \$225 for a person-only petition and \$435 for an estate-only or combined petition when I checked them in October 2026, and said a few counties charge \$35 to \$50 more. Confirm the exact amount with your court before you go. The child's parents and other relatives have to be served with the papers and the hearing date. Even relatives who consent can change their minds and show up to object. Before the judge decides, the court appoints someone to investigate whether the guardianship is necessary and write a report. Then there's a hearing where the parents and other family members get to speak. Then the judge decides.

And if the guardianship is granted, it doesn't end there. California requires the guardian to send the court an update every year on the child's health, education and where the child is living.

Your nomination records your choice, but the judge applies state law and decides whom to appoint. It is not an order. Which means two practical things.

First, the nomination has to be in a will that was signed correctly, or it may never be read at all. Everything in Chapter 4 about witnesses and formalities applies to this sentence more than any other sentence you'll write.

Second, both parents should nominate the same people. Two wills naming two different aunts is a gift to a judge who has never met either of them. If you and the other parent genuinely disagree, have that fight at your own table, in February, with coffee. Do not outsource it.

Name a backup, too. Your first choice could be sick, overseas, or gone. Jess and Marcus named Tanya, and then me and Dale behind her, and that second line cost them one extra sentence of drafting.

Choosing, with the sentiment taken out

Here's my opinion, and it's the one that makes people at church look at me sideways.

Grandparents are the sentimental choice and frequently the wrong one.

I say that as the grandmother who got passed over and then agreed with the decision. Do the arithmetic before you do the feelings. Take your child's age today, subtract it from eighteen, and add that many years to the person you're considering. If the answer is a seventy-three-year-old driving a sixteen-year-old to swim practice at five in the morning, think harder. There are plenty of exceptions — grandparents of forty-eight who are already raising kids are a different proposition entirely — but run the number instead of assuming.

The rest of what I'd weigh, in rough order of how much it ends up mattering:

Who already knows your child's actual life. The teacher's name, the allergy, the way he gets about thunderstorms. Transition is the thing that hurts a grieving child, and the person who needs the least briefing causes the least of it.

Where they live. School district, the friends your kid already has, how far from the other side of the family. Moving a child two states away from everyone who knew their parents is a second loss stacked on the first one.

The weather inside their own household. Their marriage, their money, their health, how many children they already have and how old. This is uncomfortable to assess about people you love. Assess it anyway.

Whether they'll say yes and mean it. Some people cannot say no to a dying friend's request and then cannot carry it. You want the one who'll ask you three hard questions before agreeing.

One more thing that lawyers see and ordinary people don't. If you're naming a married couple, say what you mean. Is your choice Tanya, or is it Tanya-and-her-husband as a unit? What do you want if they divorce, or if one of them dies first? Tell your lawyer which, and let the will say it. A will that names "my sister and her husband" and then goes quiet is a will that leaves a judge guessing in the worst year of your child's life.

You can also write down what you care about — faith, schooling, keeping the kids together, contact with the other side of the family. Say it, and understand that a judge isn't bound by it. Write it anyway. It tells the court and the guardian who you were.

The conversation you have to have out loud

This is the first half of the tool, and it isn't a form. It's a conversation, and it has an agenda.

Ask it in person, not by text, and not at a holiday table with eleven people in the room. Jess and Marcus asked Tanya on her back patio in October 2023, before they'd seen the lawyer, which is the right order.

What to ask them:

1. Would you do this, knowing it probably never happens?
2. Does your spouse or partner agree? I'd like to hear them say it.
3. Where would the kids live — your house, or would you come to ours?
4. Is there anything about your own situation in the next five years that I should know about? A move, a health thing, a job that travels.
5. If it ever stopped being workable for you, would you tell me?

What to tell them, in the same sitting:

6. There will be money, and here's roughly how it's set up, so you aren't raising my child out of your own pocket. (You don't have to say the balance. You have to say that it exists and who controls it.)
7. Who I've named as backup, and why.
8. Where the papers are, and who to call first.
9. That I'll check in on this every year and they can change their answer.

Then write the date of that conversation on your will decision sheet, next to the name. A nomination nobody has agreed to is a guess.

Ask them in person.

The money is the other half, and it's the half people skip

Chapter 3 said it in one line and I'm picking it up here. A minor can inherit. A minor usually cannot manage what they inherit. The ABA's wills primer says insurance proceeds payable directly to a minor child generally make a court appointment of a guardian or conservator necessary. That's the second kind of guardianship from the top of this chapter, with the annual filings and the strict rules.

Then there's the part that makes parents sit up. Without a trust or another arrangement, court or custodial control may end when the governing state law says the child can take control. In California, the court's self-help guide says a guardianship ends automatically when the child turns 18. That controlling age can differ from your state's general age of majority, and it can differ by account type. Ask your lawyer what it is for each account your child could inherit.

Legal adulthood doesn't mean a young beneficiary is ready to manage a large payout. Picture your own eighteenth birthday with a life insurance check in your hand, and be honest about what you'd have bought.

The ABA addresses this directly, and it's the most useful paragraph on that page for young parents. Trusts aren't only for the wealthy. Many young parents with limited assets create trusts, during life or in their wills, so their children's money is held until an age the parents consider mature enough, often older than the age of majority. The ABA also describes something most people have never heard of. The money can be held as a single undivided fund, used for the support and education of the children according to what each of them needs. It gets divided among them only when the youngest reaches a specified age.

Think about what that does. Three kids, aged fourteen, ten and four. A rigid equal split on the day you die gives the fourteen-year-old four years of support and the four-year-old fourteen years of it,

out of the same-sized pile. The undivided fund treats them the way you would have: whoever needs braces gets braces.

So the choices in front of you, in plain terms, are three. A trust created inside your will. A living trust you set up now. Or a custodial account under the transfers-to-minors law your state has adopted. How trusts actually work, what they cost you in bother, and whether you need the living kind at all is Chapter 6, and I'm not going to preempt it here. What belongs in this chapter is the sequence.

Set up the arrangement first. Then point the beneficiary forms at it.

That order is where families go wrong. Somebody meets with a lawyer, agrees to a trust for the children, signs everything, and leaves the two-year-old's name sitting in the beneficiary box of the life insurance policy from work, where it has been since open enrollment. The form still wins. It always wins. Pull your audit sheet from Chapter 3 and check the line for every policy and account that would pay out if you died tonight.

One more small thing from Chapter 4's list, if you're already holding money for a child or grandchild in a custodial account of that kind. Your will can name your successor custodian, which saves a court appointment. Ask for it by name at the meeting. It's one line of drafting and most people never think to request it.

Two situations where you stop and call a lawyer first

A child or adult heir with a disability who receives, or may someday receive, needs-based government benefits. Money landing in their name can cost them the benefit you were trying to supplement. A direct inheritance can disrupt needs-based benefits. Get advice from a lawyer who handles benefits planning before naming this beneficiary anywhere: a will, a trust or a beneficiary form.

A stepchild. Intestacy laws follow bloodline and marriage, so a stepchild you've raised since he was four is generally not an heir unless you name him. Chapter 4 made that point about wills. It cuts harder on the guardian question, because in a blended household there may be another living parent whose rights outrank your nomination entirely. Chapter 10 takes the whole picture apart.

The guardian letter

The will handles the legal part in a sentence. This handles the Tuesday.

It isn't a legal document, nobody files it anywhere, and it's the thing a guardian would actually read at eleven at night in the first week. One page per child, handwritten is fine, kept with your plan and a copy with the person you named.

- **Medical.** Pediatrician and dentist, with phone numbers. Allergies. Prescriptions and the pharmacy. The insurance card's location. Any specialist, and what the last appointment was about.
- **School.** District, school, grade, teacher, bus number. The IEP or 504 plan if there is one, and where the paperwork lives.
- **The day.** Bedtime, the routine around it, the food they'll actually eat, what they're afraid of, what calms them down.
- **People.** Best friends and their parents' phone numbers. The coach. The other side of the family and how much contact you want. Anyone you'd rather they not be left alone with, and no, you don't have to explain it on paper.
- **Money.** Who controls the children's money and how the guardian reaches them. Not account numbers.
- **What I'd want.** A short paragraph in your own words about faith, schooling, keeping siblings together, and anything else

you'd say if you had five minutes. Written to the guardian, not to the court.

Put the date at the bottom and both parents' initials beside it, and note on your will decision sheet where the copy sits. Then redo it when it stops being true, which for a small child is about once a year.

* * *

I wrote mine anyway.

Not as the guardian. As the backup behind Tanya, which is a job that mostly consists of being reachable. One page, in the green file, about a two-year-old who hates the sound of the vacuum and will eat anything if it has cheese on it. Most of it will be wrong by the time he's five, and I'll write it again.

Jess asked me once whether it bothered me, being second. I told her the truth, which is that it did for a day and then it stopped, because the only question that mattered was who gets Owen to school on Monday.

If you have a child under eighteen and no name written down anywhere, that's tonight's work. One name, one backup, and a phone call to ask.

Chapter 6: Living Trusts: Who Needs One and Who Doesn't

The flyer came to Marlene's house, not ours, which tells you something about the mailing list.

Cream card stock. A photograph of a gray-haired couple on a porch swing that nobody's grandchildren have ever sat on. Across the top, in a font pretending to be handwriting: *Protect Your Home. Protect Your Legacy. Lunch Is On Us.* The steakhouse out on Bridge Street, a Thursday at noon, the last week of February 2024.

She walked it across the road and put it on the counter next to the salt shaker and said she wasn't going alone.

So we went.

They had set out forty chairs in the back room and nineteen of them filled, counting us. I was the youngest person there by a decade, which at fifty-nine was a new experience. Chicken or sirloin. The iced tea came in those amber plastic tumblers. A pleasant man in a good jacket stood at the front with a remote in his hand and talked for fifty-one minutes.

I counted the word "probate" nineteen times. I counted the questions he asked us about what we actually owned.

Zero.

That is the whole problem in one number. The slides were written before any of us walked in. So the answer at the end of them came out the same for the retired schoolteacher with a paid-off house, the farmer with two hundred acres and a son in Indiana, and Marlene, who has a checking account and a Malibu. Nineteen people, nineteen

different sets of facts, one recommendation. A plan shaped before anybody asks what you own isn't a plan. It's a product.

There was a sign-up sheet by the door and a man with a tablet taking appointments for the following week. He quoted a price at our table, and I'm not going to print it, because one man's number in one steakhouse in one Ohio county in February 2024 tells you nothing whatsoever about what a lawyer in your town would charge you. If a number ever shows up in this book, you'll get the year and the source along with it. That one has neither.

We left without signing. In the parking lot, with her coat buttoned wrong, Marlene asked me the question you're holding this chapter to ask.

"So do I need one of those or not?"

I told her I didn't know yet. Then I told her the more useful thing, which is that neither did he.

What the thing actually is

Strip the porch swing off it and a revocable living trust is a legal arrangement you set up while you're alive. The American Bar Association's page on revocable trusts puts it plainly: the trust is legally in existence during your lifetime, it has a trustee serving right now, and it owns property that you have transferred into it. You are usually that trustee yourself, sometimes alongside a co-trustee. You manage your own property, for your own benefit, exactly as you did before, and most of these trusts are written so you can amend or revoke them whenever you want.

Then two things can happen.

If you become unable to handle your own affairs, the trustee named to step in is authorized to manage the property and spend it on you and your family. If you die, that successor trustee either

hands the property to the people you named or keeps holding and managing it for them, according to the instructions you wrote.

There's a second animal with a similar name. An irrevocable trust can't be revoked or changed, and the ABA says it's done almost exclusively to produce particular tax or asset-protection results. That one is lawyer territory from the first sentence, and if anyone at a lunch seminar suggests it, stand up. I'm talking only about the revocable kind in this chapter.

Notice what the definition does not contain. No porch. No protection from anything. It's a box with a name on it, a person responsible for the contents, and instructions.

Everything useful about it depends on what's in the box.

What it is genuinely good at

I want to give the trust its due before I take the air out of the sales pitch, because the ABA is more enthusiastic about living trusts than the seminar was, just for different reasons.

Somebody can manage your money if you can't, without a judge choosing them. This is the one the flyer didn't mention once. A will does nothing while you're alive. A funded trust gives your successor trustee authority over the property in it the day you can't exercise it yourself, which avoids having a guardian appointed for that purpose. The ABA's probate page goes further than I expected. It says a properly prepared and administered living trust is a very effective tool for managing assets through illness, disability or the effects of aging. It then adds that, with an aging population, using trusts to reduce the risk of elder financial abuse deserves to be an important consideration in a plan. The strongest official endorsement I found for living trusts is about being alive, not about dying.

Property in a second state. If you own real estate somewhere other than where you live, pay attention to this one. Cornell's Legal Information Institute, in its entry on ancillary administration last reviewed in June 2021, explains that estate assets located in a state other than where the person lived need a proceeding in that state too, because each state has its own property laws. Two states, two court processes, two sets of fees, two lawyers who've never met. A cabin in Michigan or forty acres in Kentucky titled into a trust travels differently.

Holding money for an heir who shouldn't get it all at once. If money needs to be held for a child or an adult beneficiary, reread Chapter 5. Here, the question is whether a living trust is the right vehicle; take that question to a lawyer.

Delay. California's court self-help site says the fastest probate can happen in California is typically nine months. That's the fast version, in one state, according to that state's own courts. If your state's process runs like that and your family would be waiting on the house, the trust is buying something real.

What it does not do

Now the other column, and this is where the lunch was being paid for.

It does not save estate tax. Not a dollar. The ABA says so in a single sentence: revocable trusts don't help you avoid estate tax, because your power to revoke or amend the trust keeps the property includable in your estate. If anyone tells you a revocable living trust reduces your taxes, you have learned something valuable about that person and nothing about trusts. Chapter 1 covered what the federal figure is and where to check it, and most readers of this book are nowhere near it anyway.

It does not control anything you didn't put in it. I'll come back to this because it's the failure I'd bet on.

It does not finish the job by itself. The ABA states that a living trust can almost never totally avoid probate, and that a simple will is still needed to "pour over" into the trust any property you didn't transfer during your lifetime. So the trust doesn't replace your will. It adds a document and keeps a shorter one. Anybody selling you a trust as the thing that lets you skip a will is selling you the wrong thing.

It does not delete the work. One line from the ABA's probate page deserves to be read out at every free lunch in America. The basic job of administering and accounting for assets has to be done either way: by an executor in probate, or by a trustee because everything sat in a living trust. Somebody still inventories, still pays, still files. And much of the delay people blame on probate comes from tax laws and tax filing requirements, which a trust does not eliminate.

It is not free, before or after. Property passing through a trust has to be moved in, administered by a trustee who may or may not charge fees, then moved back out to the beneficiaries. The ABA notes there can be other costs along the way too, such as real estate transfer taxes or fees, depending on where you are.

Privacy is a maybe, and it's state-specific. You'll hear that a will becomes a public record and a trust doesn't. Whether that matters in your state, and how much of a probate file the public can actually see, is a question for a lawyer licensed where you live. Ask it as a question. Don't buy it as a fact.

Funding is the whole job

If you take one thing from this chapter, take this.

A trust controls what has been retitled into it. Nothing else.

That means the deed to the house has to be re-recorded in the trust's name, at the county, with whatever your state requires. The brokerage account has to be reopened or re-registered in the trust's name. The bank has to change the title on the account. Every piece has its own paperwork, its own clerk and its own waiting period, and the retirement accounts need their own careful handling, because naming a trust as the beneficiary of an IRA or a 401(k) has tax consequences that are genuinely complicated. Don't do that part off a template. Ask the lawyer, in the meeting, what should happen to each account by name.

Here's how it goes wrong, and I've watched it twice.

Somebody pays for a trust. They get a handsome binder with a blue cover and gold lettering, and in the back there's a list of transfers to complete. The binder goes on a shelf. Six years later the deed is still in their own name, the accounts are still in their own name, and the trust owns one dollar that somebody put in to open it.

An unfunded trust is the most expensive empty folder a family can buy.

So when you ask a lawyer about a trust, the real question isn't what the document costs. It's this: who does the funding, is it included, and will I get a written list of what still needs to move, with a date on it? Get the answer before you decide, not after. And before any retitling, ask the institution and your lawyer whether the change affects that account's beneficiary designation, and request the answer in writing. Then walk every line of the audit sheet from Chapter 3 again.

Ask who does the funding.

Probate in proportion

The seminar's entire engine was fear of probate, so let's look at what the lawyers' own association says about it.

The ABA's probate page says most probate proceedings are neither expensive nor prolonged, and then says out loud what I'd been thinking in the back room of that steakhouse: that this is contrary to the claims of many vendors selling living trust products. It adds that many states have simplified or streamlined their probate processes, and that in those states there's less reason to use probate-avoidance techniques unless you have other valid reasons.

It also makes the point that reframed this for me. In planning your estate, more important than minimizing probate is minimizing the things that make probate difficult in the first place, like lawsuits among the heirs.

Probate laws differ in every state. In some states court and attorney fees are set by statute; in others they're minimal. A well-drafted will can cut out some of the steps in many states. A comparison between the cost of probate and the cost of a trust has to be made case by case, which is a sentence that will never fit on a flyer.

So "does a trust avoid probate" is the wrong question. The question is what probate costs and how long it takes where you live, and whether that's worth what the trust costs you in money and bother. In California, by that state's own account, nine months is the fast lane. In a state with a streamlined small-estate process and a house that passes to a surviving spouse by the title, you may be paying to avoid three months and a filing fee.

Find out which state you're in. Literally.

Does a trust earn its keep

Here's the decision rule Dale and I used, and the one I gave Marlene on a sheet of notebook paper. It doesn't give you an answer. It tells you whether you have a real question to take to a lawyer or a sales pitch to walk away from.

Count how many of these are true for you.

1. I own real estate in more than one state.
2. Someone has to be able to manage my property for me if I can't, and I'd rather that person be named by me and ready to act than appointed by a court.
3. Money needs to be held for somebody rather than handed to them: a child, a young adult, an heir who can't manage money, or an heir on needs-based benefits.
4. A local lawyer has told me that probate in my county is slow or costly for an estate like mine.
5. I expect a fight. Ask a lawyer licensed in my state what parts of probate are public and whether a trust would change that for my property.
6. A good part of what I own has no beneficiary form available and no joint owner, and the only road it can travel is through the will.

None true, or one? You probably don't need one, and you certainly don't need one this Thursday from a man with a tablet.

Two? Put those two facts on your asset map and ask a local estate lawyer one question: what would a trust solve here that my will and financial POA would not? Do not buy one at a seminar before you get that answer.

Three or more? You have a genuine question. Take this list to an estate lawyer, say which items you checked and why, and ask them to tell you in plain terms what the trust would do for those specific facts. Then ask what it would cost to do nothing. A lawyer who won't answer the second question isn't advising you.

And whatever you decide, the arrangement belongs in the asset map from Chapter 2, with a date, because future-you will not remember why.

What we decided, and what would have changed it

We said no.

Our facts: one state, a house we own together with a survivorship title, retirement accounts and insurance that travel by the forms we'd just spent January fixing, one adult daughter who teaches seventh-grade science and is married to a man who alphabetizes his tools. On my six questions, Dale and I checked exactly one, and it was number two, and Chapter 7 is about the cheaper document that handles it.

Sam confirmed it in about four minutes in April and then charged us for four minutes, which is what I wanted. He didn't talk us out of a trust. He asked what we owned, in what state, titled how, and then said that for us it would be paperwork we'd have to maintain for twenty years to solve a problem we didn't have.

Here's what would have flipped us, and I want you to see how small the changes are.

If Dale's uncle's cabin in Michigan had ever come down to us, we'd have a trust. One cabin, two states, and I know what two court processes feel like.

If Jess had died before us and Owen had become our direct heir at four years old, we'd have a trust, and Chapter 5 says why.

If either of us had a condition that made a bad year likely rather than possible, we'd have a trust, because the ABA's best argument for one is about managing property while you're still here.

That's the honest shape of this decision. It isn't about how much you own. It's about where it sits, who's going to receive it, and whether you'd be comfortable with a judge picking the person who handles your checkbook.

Marlene checked none of the six.

She called me from her kitchen the next week to say a woman from the seminar had phoned her twice. The second time, Marlene

told her she'd decided to spend her money on a will, a power of attorney and a health care form, and asked to be taken off the list.

Then she asked me whether that was all right.

It was more than all right. A seventy-one-year-old widow with a paid-off house and two children who call on Sundays does not need a binder with gold lettering. She needs four signed documents and a drawer her kids know about.

If you've been carrying a flyer like Marlene's around in your coat pocket, go read my six questions and count. Then put the flyer in the recycling or put it in the folder with a note about which numbers you checked.

Either one beats a Thursday at the steakhouse.

Chapter 7: Financial Power of Attorney: The Document You'll Need While You're Alive

My mother had the paperwork. That's the part that still gets me.

Helen spent most of her working life as a paralegal at a law office downtown. She knew the words. She had a financial power of attorney drawn up properly in 2009, signed with witnesses and a notary, three copies, one of them in a fireproof box in her bedroom closet under the winter blankets. When Dad died in 2016 she took that box out, checked that my name was still on the document, and put it back.

In March 2017 she fell in her own kitchen reaching for the coffee filters on the top shelf. Hairline fracture in the left wrist. In the emergency department somebody noticed she couldn't name the month, and a nurse said the word "infection" in a kind voice, and some of that confusion cleared over the following week and some of it never did.

She came home with a brace, a folder of appointment cards, and no interest whatsoever in her mail.

Three weeks later I found a pink shut-off notice from the electric company in the stack by her toaster, under a church bulletin and two seed catalogs.

So I drove to her bank on a Tuesday morning with her power of attorney in a manila envelope, feeling, I'll admit, a little smug about being the daughter who had the document.

The teller got the branch manager. The branch manager read it twice, turned to the second page, and put his finger on a paragraph I had never read carefully. Mom's document was a springing one. It took effect only on the written determination of two licensed physicians that she could no longer manage her own affairs.

He wasn't being difficult. He was reading the instructions my mother wrote.

Her doctor of nineteen years had retired the year before. The one who inherited the practice would not write a letter about a patient he'd met once, which is defensible, and the first opening he had was eleven days out. The second physician's letter came from the hospital, by fax, after I called four times. Then the bank's own people needed to look at both letters.

Twenty-three days from the pink notice to the morning I could pay my mother's electric bill.

I paid it out of my own checking account that first week, along with her supplemental insurance premium. Two checks, \$271.64, and I never asked anybody to pay me back, and that was never the problem. The problem was the twenty-three days.

Here is the part I want you to sit with. Mom chose springing on purpose. She had watched, from a desk at a law office, what a few agents did with immediate authority over somebody else's money, and she didn't want a document floating around that let anyone touch her accounts while she was perfectly capable of writing her own checks. Her instinct was sound.

She just never found out what the trade cost.

What this one piece of paper does

A power of attorney lets you name someone to act for you in money matters while you are alive. That's the whole idea. The American Bar Association's page on the subject says it is accepted in all states,

though the rules and requirements differ from one state to the next, and the person you name is called your agent or your attorney-in-fact.

The document can be narrow or wide. The ABA describes a power limited to one particular activity, like closing the sale of your house while you're out of the country, or general in its application, which is the kind most people mean when they're planning. It can take effect the moment you sign it, or only when something happens later, usually a determination that you can't act for yourself. That second kind is the springing one that cost my mother and me three weeks.

Your agent has only the authority the document gives. And in a lot of situations the agent has to physically produce the paper to use it. The ABA's examples are the ones I've lived: the motor vehicles department wants to see it before honoring a signature on a title, a title company wants it for real property, a broker or banker wants it before selling securities or opening and closing accounts. Signing checks for you is usually the exception where nobody asks.

There's a second document with a similar job in the medical world. It names who speaks for you about your care rather than your money, and it is Chapter 8's entire subject. Two documents, two different jobs, often signed the same afternoon. Don't let anyone tell you one covers the other.

The word that does the actual work

Durable.

A durable power of attorney stays good after you become incapacitated. Cornell's Legal Information Institute, in its durable-power-of-attorney entry last reviewed in January 2022, says the durability has to be explicitly stated, and that a non-durable one, meaning a document without that provision, ends the moment the principal is incapacitated.

Read that sentence backward and you'll see why it matters. A power of attorney without durability language stops working at exactly the point where you most need somebody to be able to act. It's a document for conveniences, not for crises.

The ABA says most states today permit a durable power that remains valid once signed until you die or revoke it. Some older state rules required renewal; some people's documents include a termination date on purpose, which the ABA notes is done to reduce the risk of a former spouse or a former friend still holding authority years after the friendship ended.

When your lawyer hands you a draft, find the sentence that says the document survives your incapacity. Point at it. Ask them to read it out loud.

If it isn't there, you don't have what you came for.

Why we picked immediate, and why you might not

Dale and I signed immediate powers for each other. No physician letters, no triggering event, no certification clause. The day we signed, each of us could have walked into the credit union and moved the other's money.

That sounds reckless written down. Here's the reasoning.

The man I'd be handing that authority to has slept beside me for thirty-eight years and has never once spent money without telling me, including the time he bought a used sheet metal brake at an auction and confessed before he got it in the truck. If I can't trust Dale with immediate authority, a springing clause is not going to save me. It's going to delay him by twenty-three days on the worst month of my life, and the person who takes advantage of an immediate power is rarely stopped by a paragraph requiring letters.

That's my opinion and it comes with a condition attached: it only holds if your agent is the right person. If you are naming somebody because they're the oldest, or because they live closest, or because you'd feel awkward not naming them, the springing clause is not your fix either. Pick a different agent.

Some people still choose springing for real reasons. You might be naming an adult child you trust but whose spouse you don't know well. You might be in a second marriage where the children of the first marriage are going to read everything you sign. You might just hate the idea on principle, the way Mom did.

If you choose it, do this: make the trigger as easy to pull as your lawyer will let you. One physician instead of two. A named doctor rather than "two licensed physicians" in the abstract. A written standard for what the letter has to say. Ask your lawyer what their certification clause actually requires in practice, and ask how long it has taken their other clients to satisfy it.

Then call your doctor's office and ask whether they write those letters at all, and what they charge, and how long it takes. Do that before you sign, not in the week of the pink notice.

Picking the person

The ABA is blunt about qualifications, and I'd put this on a card: there are no special qualifications to act as an attorney-in-fact, except that the person must not be a minor or otherwise incapacitated. That's the legal floor. It is a very low floor.

The sentence worth copying out is the next one. "Integrity, not financial acumen, is often the most important trait of a potential agent," the ABA says on that same page.

I believe that more every year. The bookkeeping can be learned in an afternoon or bought from an accountant. Honesty under pressure,

when nobody's watching and your mother's savings account is sitting right there, cannot be bought at all.

Two structural points the ABA makes that people skip.

Name successors. Always. Your agent may be unavailable or unable to act when the time comes, and if you named one person and nobody behind them, you're back to the courthouse. Name a second. Name a third if you have one.

And if you name two people to act at the same time, say in the document what happens when they disagree or when only one is reachable. The ABA points out that co-agents may not all be available and may not agree, and that the designation should indicate whether you want a majority to act. Two adult children named jointly, in a family where they already argue, is not fairness. It's a stalemate with your checkbook in the middle.

Tell them, out loud, before the signing. Not because the law requires it. Because the first time someone learns they're your agent should not be at a hospital information desk.

Then hand them something to read. The Consumer Financial Protection Bureau publishes free booklets called "Managing Someone Else's Money." There's a separate one for each kind of financial caregiver, and the one you want is the version written for an agent named in a power of attorney. It's a PDF on consumerfinance.gov, and the page was last modified in June 2026. It costs nothing, it's written for ordinary people, and it explains fiduciary duty better than I can in a chapter about something else.

Dale printed the agent one and read it at the kitchen table with a pencil. He underlined one line about keeping the money separate and said he was going to need a notebook.

The powers worth arguing about

A general power of attorney covers the daily machinery: deposits, bills, insurance, taxes, the mortgage. The interesting questions are at the edges, and your lawyer will ask about them if they're any good.

Gifts. Your agent can make gifts for you, subject to the guidelines you write into the document. Some states permit it by statute; others require explicit authorization in the paper itself. If gifting matters in your plan, say so expressly, with limits. One caution: the ABA's page still illustrates annual exclusion gifts with a figure from 2013. Use the current year's number from the IRS page Chapter 3 pointed you to, and let your lawyer draft the language, because the ABA warns that a badly drafted gifting power can create estate tax consequences nobody intended.

Changing how things are titled. This one deserves your full attention. The ABA notes that even without touching your will, an agent can affect who ends up with your assets by changing the ownership of them. Remember the four roads from Chapter 2. An agent with title-changing authority can move an asset from one road to another. That can be exactly what you want, or a disaster, depending entirely on who's holding the pen.

Trusts. Some jurisdictions let an attorney-in-fact create or amend trusts for you during your lifetime, or transfer your assets into a trust you already set up. If you went through Chapter 6 and decided a trust earns its keep, this clause is how the funding keeps happening if you can't do it yourself. The ABA says it is prudent to state clearly in the document whether you want your agent to have these powers.

What your agent can never do. Revise your will. That's not on the menu in any state.

Your digital accounts. Whether your agent can get at your email, your photo storage and your online-only bank depends on

language in the document and on a body of law I'm giving its own chapter. Ask for it; see Chapter 9 for what to ask for.

Two more things from the ABA that are easy to miss. The law of the state where you live when you sign generally governs what your agent can do. And if you own real estate or valuable property in another state, check with a lawyer that your document reaches it.

Will the bank take it

This is the question nobody asks and everybody later wishes they had.

A perfect document that your bank won't honor is a stack of paper. Institutions have their own review processes, and some of them want their own form signed alongside yours. The time to find that out is while you're healthy enough to sign whatever they want.

So call. Ask the branch, and your brokerage, and whoever holds the retirement accounts, what they require to accept a power of attorney, whether they have their own form, and how long their review takes. Write the answers and the date on the asset map from Chapter 2. If an institution says it will want its form, get the form now.

Copies matter too. Your agent needs to be able to put their hands on the document the day it's needed, which is Chapter 12's job, but the short version is that a document only you can reach is a document nobody can use.

And know how to undo it. Most states require written notice of revocation to the person you named, according to the ABA, so revoking is not a matter of tearing up your copy and feeling better. If your agent is a spouse and the marriage ends, or a friend and the friendship does, talk to your lawyer the same month.

One more thing, since Chapter 3 already walked you through the trap: adding a child to your checking account is not a substitute for

any of this. It's a title change with permanent consequences. A durable power of attorney is the tool that does the bill-paying job without handing anyone an inheritance by accident.

Seven questions before you write a name

Answer these on paper, in the green file, behind the will decision sheet.

1. If this person had access to everything I own tomorrow and nobody was checking, would I sleep?
2. Can they do a boring, repetitive job for possibly years without quitting?
3. Will they say no to a relative who asks for money, in writing, and take the phone call that follows?
4. Do they live close enough, or deal well enough with institutions by phone, to spend a morning at a bank branch?
5. Who is second, and who is third, and have I asked them too?
6. If I'm naming more than one person, have I said in the document whether a majority can act?
7. Have I told this person out loud, given them the CFPB guide, and written down the date I asked them?

Three or more uneasy answers and you have the wrong person, not the wrong document. Keep looking. A good agent who isn't family beats a bad one who is.

The sheet you leave behind

The document gives your agent authority. It doesn't tell them where anything is. That gap is why competent, willing agents spend their first two weeks on hold.

So write one page, date it, and clip it to the signed document. Not a legal document itself. A map.

- Which bills pay themselves automatically, from which account, and on what day of the month.
- Which bills arrive on paper, and where the mail piles up.
- The institutions by name, with a phone number and the last four digits only, pointing back to the asset map rather than repeating it.
- Who to call first: the lawyer, the accountant, the insurance agent, and the one neighbor who notices things.
- Anything that will break if it's missed for thirty days. The crop insurance. The storage unit. The quarterly estimated tax payment.
- What I'd want done with the house if this goes on longer than a season.

That last line is the one people leave off, and it's the one my mother and I never discussed.

The alternative to all of this is a courtroom. The ABA says it plainly. Without a power of attorney, if you become unable to manage your own affairs, a court may have to appoint someone to act for you. Your state calls that person a guardian, a conservator or a committee. And in that proceeding, the ABA notes, you may not have the ability to choose who it is. The same page adds that for some people, extra protection against having a guardianship imposed comes from also having a revocable living trust, which is the question Chapter 6 asked you to answer.

The morning the bank finally said yes, I paid my mother's electric bill in about four minutes at a desk with a glass partition, and then I sat in the parking lot for a while with my hands on the wheel.

Call your bank this week and ask what it wants to see. Then write down what they tell you, with the date, and put it where your agent will find it.

Chapter 8: Health Care Directives: Who Speaks for You When You Can't

The resident couldn't have been thirty. He came around the curtain at two in the morning with a clipboard against his hip and asked the room who could make decisions for Helen.

There were three of us in that ICU bay. Me, a nurse adjusting something on the pole, and my mother, who had been admitted that afternoon in 2018 and had not said a word I could understand since about six o'clock.

I said I could, and then I did the thing I'd been carrying around in my handbag for two years without ever using it. I took out a folded sheaf of paper, four pages, soft at the creases, and handed it over.

He read the first page standing up. Then he said, "Can I copy this?" and walked it down to the station himself.

That's the whole story. There's no twist in it. A twenty-minute conversation happened with me instead of around me, and three hours later we made a decision together that I still think was the right one, and my mother never knew any of it took place.

I've told the hard version of our family's paperwork failures twice in this book already. This is the one where the paperwork worked. It worked because Helen was a paralegal who'd signed the thing in 2009 alongside her financial power of attorney, and because I had gotten into the habit, after Dad died, of moving it from one purse to the next.

Four pages. Soft at the creases.

Two documents, two different questions

The National Institute on Aging describes advance directives as legal documents that give instructions for medical care and take effect only if you can't communicate your own wishes. That last part is the piece people get wrong. Signing one changes nothing about today. Nobody gains any say over your care while you can still speak for yourself.

The NIA names the two most common kinds, and the split between them is the whole architecture.

A living will says what. It tells doctors how you want to be treated if you can't make your own decisions about emergency treatment, which common treatments you'd want, which you'd avoid, and under what conditions each answer applies. The American Bar Association's page on health directives is worth reading before you sign one. It points out something most people don't consider: some commonly used clauses in living wills may forbid assisted breathing, including a device you might already be using for a condition like COPD. Never sign a form handed to you as the standard one until you've read it and confirmed it says what you mean.

A health care power of attorney says who. The NIA calls the person your health care proxy, and you'll also see representative, surrogate and agent. The ABA notes that normally one person is appointed, not several acting at once, though it's common to name one or more alternates if your first choice can't be reached.

You can have a proxy without a living will. The NIA says so plainly: a proxy can be chosen in addition to or instead of a living will, and having one helps with the situations nobody can write down in advance, like a stroke or a bad wreck.

My own view, and it's only mine: if you're doing one, do both. The living will tells your proxy what you meant. The proxy handles the decisions no form anticipated.

The default, and who it leaves out

Chapter 1 gave you the short version of what happens with no directive. Here's the rest of it, because the rest is where people get hurt.

The NIA says that without a directive, your state's laws determine who may make medical decisions for you. Typically that's your spouse, your parents if they're available, or your adult children. With no family at all, the NIA says some states allow a close friend who knows your values to help, and otherwise a physician may be assigned to represent your best interests.

Read the gaps in that.

An unmarried partner who hasn't been named could be excluded from the decision-making, which the NIA says outright. "Some states allow" a close friend means other states don't. And that last clause about an assigned physician is the one I'd tape to the refrigerator of anyone who tells me they don't need this. Your best interests, decided by a doctor meeting you for the first time, from your chart.

The NIA's advice for finding out what your own state does is to contact your state legal aid office or your state bar association. Ask whether they offer free information, or legal help you might qualify for. Do that before you decide this doesn't apply to you.

Picking the person who'll be standing there

The qualities are not the same as the ones in Chapter 7. A financial agent needs to be dogged and honest on the phone for months. A health care proxy needs to be able to say one sentence out loud in a corridor at two in the morning while people in scrubs wait for an answer.

Two things to screen for.

Will they do what you asked, even when they'd choose differently? The ABA says to confirm before appointing someone that they will in

fact be willing and able to carry out your wishes, and it gives a specific example: if your preferred proxy holds a religious view that prevents them from carrying out your wishes, name someone else. That isn't a judgment about the person. It's a kindness to them. Don't hand a job to someone who'll have to violate their own conscience to do it.

Second, can they be reached? Name alternates. The ABA treats successors as standard practice, and the hospital will work down your list.

Notice what isn't on the list. Not the oldest. Not the one who lives closest. Not the nurse in the family, though a nurse in the family is handy for translating afterward. The person who can hold the line is the person you want, and they may be the one who cried least at the last funeral, which tells you nothing about how much they loved anybody.

Ask them out loud. Then ask the alternate.

What the paper can't make happen

An advance directive is legally recognized but not legally binding. That's the NIA's own phrasing, and I'm quoting it because I've watched two families discover it the hard way.

What it means in practice: your provider and your proxy will do their best to respect your directive, and there may be circumstances where they can't follow it exactly. You might be in a complicated medical situation where nobody can tell what you would have wanted. That's not a failure of your form. No form covers everything.

The NIA also lists three grounds on which a health care provider might refuse to follow your directive: the provider's conscience, the institution's policy, or accepted health care standards. If that happens, the NIA says the provider must inform your proxy immediately and consider transferring your care to another provider.

Your proxy should know that sentence exists. It's the difference between feeling powerless at the desk and knowing what to ask for next.

The orders a doctor writes

A living will is your document. A medical order is the doctor's.

The NIA treats these as a separate category, and the distinction matters in an emergency. A do not resuscitate order goes into your medical chart and tells staff in a hospital or nursing facility not to attempt CPR or other life-support measures if your heart and breathing stop. The NIA notes that even if your living will says you don't want CPR, it's still helpful to have the DNR in your medical file when you go to a hospital. Without the order, staff will attempt every effort to restore your breathing and heart rhythm.

There are relatives of the DNR. A do not intubate order covers the ventilator. A do not hospitalize order tells long-term care staff you'd rather not be sent to a hospital at the end of life. An out-of-hospital DNR alerts emergency medical personnel outside a hospital.

Then there's the POLST, or MOLST depending on your state, also called a portable medical order. The NIA describes these as forms that give guidance health care professionals can act on immediately in an emergency, as a medical order in addition to your advance directive. They're typically created when you're near the end of life or critically ill and you understand the specific decisions likely to come up. Your state department of health can tell you whether these forms exist where you live.

If you're healthy and doing your planning on a Tuesday night at the kitchen table, you probably don't need any of these yet. You need to know the words, so that when a doctor says "POLST" to you in four years you don't nod at something you've never heard of.

Getting the forms without paying for anyone's markup

You can establish your advance directives for little or no cost. That's the NIA again, and it's one of the few places in estate planning where free is also correct.

Many states have their own forms. The NIA's list of places to find them starts with your State Attorney General's office and your local Area Agency on Aging, which you can reach through the Eldercare Locator at 800-677-1116. The NIA also points to downloads from AARP, the American Bar Association, and the National Hospice and Palliative Care Organization's CaringInfo. If you're a veteran, your local VA office has an advance directive written for veterans, VA form 10-0137.

You don't need a lawyer for this. The NIA says a lawyer can help but isn't required, and adds that if you have one, give them a copy. There are also outfits that will sell you a form online. Before you pay anybody, remember the list above.

One caution from the NIA that applies to any form you find online: check that it's legally recognized in your state, and check that the website is secure before you type anything personal into it.

A lawyer can help with your state's signing rules and with whether a separate HIPAA authorization belongs in your plan. But the NIA is clear that you don't need one to create the directive.

Signing it so a hospital will take it

Generally these documents require at least two adult witnesses. That's the ABA, and the rest of its witness guidance is a list of people who usually can't serve.

Most states restrict who may witness. Generally, witnesses can't be anyone entitled to an inheritance from you, by will or by state law. Often state law also bars anyone related to you by blood or marriage,

or anyone responsible for paying your medical bills. And some hospitals and other medical institutions have a policy against letting their employees witness the signing. Worth knowing before you plan to do this from a hospital bed.

Some lawyers recommend notarizing as well as witnessing. Ask yours.

Two more from the ABA. All states recognize these documents, but the law varies on whether a state will recognize a document prepared in another state. You don't need extra paperwork for a vacation. But if you spend a considerable part of the year living in more than one state, consider having the documents prepared in each one, and keeping a copy in each place.

Changing your mind takes more care than tearing up paper. The ABA's page says you can destroy the documents you have and create new ones, but that only handles the copies in your own hands. Your proxy has one. So does your doctor, maybe a hospital, maybe a registry. And states set their own revocation rules. California's Probate Code, section 4695, is an example: you can revoke most of a directive in any way that shows you mean it, but revoking the person you named as agent takes a signed writing or telling your supervising health care provider in person.

So look up your own state's rule before you change anything. Then tell your proxy and your doctors, replace any registry copy, and write "revoked" and the date on every old copy you can get back before you hand out the new one.

The privacy law that stops families at the desk

Here's the paragraph I wish somebody had explained to me in 2018.

Under the HIPAA Privacy Rule, the person with legal authority to make health care decisions for you is your "personal representative." The Department of Health and Human Services says a covered entity

must treat that person as if they were you, both for uses and disclosures of your protected health information and for your rights under the Rule. HHS's guidance on personal representatives, last reviewed in January 2024, lists a health care power of attorney among the examples for an adult, along with a court-appointed legal guardian and a general or durable power of attorney that includes the power to make health care decisions.

HHS also says the personal representative stands in your shoes and can exercise your rights, including access to your information to the extent it's relevant to the representation.

Pay attention to that last clause, because it has teeth. HHS gives an example: a person holding a limited health care power of attorney about only one specific treatment, such as the use of artificial life support, is your personal representative only for health information relating to that decision. Narrow document, narrow access.

Many lawyers add a separate HIPAA authorization alongside the directive anyway, naming the people who may receive information even if they aren't the ones deciding. Whether you need one is a question for a lawyer in your state, not a rule I can give you. Ask yours.

Five questions to answer out loud

The form is half of this. The other half is a conversation most families schedule for never.

The NIA opens its advance care planning page with a finding from one study: people guessed nearly one out of three end-of-life decisions for someone close to them incorrectly. Not because they didn't care. Because they'd never been told.

So sit down with the person you're naming, at your own table, with coffee, and answer these five out loud. Write the date on the directive afterward.

1. What does a good day look like to me now, and what would have to be gone before I'd say it stopped being my life?
2. If a treatment could extend my life but not get me back to that, do I want it tried, tried for a set period, or not started?
3. Where do I want to be at the end if there's a choice: home, hospital, somewhere else?
4. Who else should be in the room, and who should not be told anything until it's over?
5. If you had to go against what my sister wants in order to do what I asked, could you?

Question five is the one that decides whether you've picked the right person. Watch the face, not the answer.

Then talk to your doctor. If you have Medicare Part B, Medicare.gov says it covers voluntary advance care planning as part of the "Welcome to Medicare" visit and the yearly "Wellness" visit. You owe nothing there if the provider accepts assignment. Get it during other treatment and the Part B deductible and coinsurance apply. Ask before the visit which one you're booking. With private insurance, the NIA says to check with your insurer.

Where the copies go

A directive nobody can find is a directive you didn't sign. Six places, and this list goes in the green file behind the agent sheet from Chapter 7.

- Your proxy, and each alternate, with the date you gave it to them.
- Your regular doctor, for your medical records.
- The hospital, at admission. Take it with you and let them put a copy in your file.
- Your lawyer, if you have one.

- Your own file at home, where a responsible adult knows to look.
- Your state's registry, if yours has one. The NIA notes some states keep them for quick access by providers and your proxy.

Two habits on top of that. The NIA says to think of these as living documents you review at least once a year and update after a major life event: retirement, a move out of state, a real change in your health. And when you replace a version, the NIA says to file and keep the previous one and note the date it was replaced, and to make sure any registry has the latest. That fits the revocation step above: the old copy stays in your file, marked, so nobody ends up holding two papers with no way to tell which came last.

That goes on the March list in Chapter 12.

Mom's four pages were in a hanging folder in her closet until 2016. After Dad died, I asked for a copy and put it in my purse, and I moved it from that purse to the next one three times without really thinking about why.

I still don't know what made me keep doing that. But I know what the resident saw at two in the morning, and I know he stopped looking around the room for somebody else.

Make the copies this week. Hand a paper copy to your proxy in person and ask where they'll keep it so they can reach it fast. Then do what the NIA suggests and put a card in your own wallet saying you have a directive and where the current copy is kept.

Chapter 9: Passwords, Phones and Photos: Planning for Your Digital Life

In March of 2024 I was clearing out the cabinet above the kitchen phone, the one with the dead batteries and the church directory from two addresses ago, because the drawer with our plan in it had stopped closing properly.

Taped inside the cabinet door was a yellow sticky note. Dale's handwriting, the squared-off kind he uses on invoices. It said DALE EMAIL and then a word and four numbers.

I know roughly when he wrote it, because he switched to that email address the year the shop got a second truck. Call it 2012.

I stood there with a trash bag in one hand and tried it on my own laptop. It worked.

Dale came in from the garage, looked at the note, looked at me, and said, "Well, there it is." He was not embarrassed. He was pleased he'd found it.

That is the whole problem with digital accounts, in one square of adhesive paper. The information a family needs is either written somewhere a burglar could find it in ninety seconds, or it is nowhere at all.

Why this part doesn't work like the rest of your plan

Everything else in this book moves by one of four roads. Your will, the title on the thing, a beneficiary form, or a trust. We spent Chapter 2 sorting your property onto those roads.

Your email does not travel any of them.

Three reasons, and they stack. First, you don't own most of these accounts the way you own the truck. You agreed to a company's terms, and those terms say what happens when you die. Second, federal privacy law treats the contents of your messages as something a company may not hand out to whoever shows up with a sad story. Third, and this is the one that surprises people: having the password does not make it legal to use the account. Under the state laws I'm about to describe, a person handling your affairs is specifically not allowed to pretend to be you.

So the sticky note solves nothing, even when it works. A family member who logs in as Dale and starts answering his email is doing something the law in a lot of places does not permit, with a password the company never agreed to let them have.

What you want instead is permission, recorded where the company will honor it.

The law, in plain English, with the caution it needs

A model law called the Revised Uniform Fiduciary Access to Digital Assets Act has been enacted in a number of states. I am not going to tell you how many, because I could not verify the count from a source I trust, and I'd rather give you nothing than a number you repeat at a kitchen table.

I can show you what it says where it has been adopted. Washington's version sits at RCW 11.120. Florida's is chapter 740 of its statutes. Both are free to read on the state's own website, and I'm using them as examples of how these rules read, not as the law where you live.

Four pieces matter to you.

The online tool can win. In Washington and Florida, a direction you give through a company's built-in tool overrides a contrary will, trust or power of attorney, if the tool lets you modify or delete that direction at all times. That condition is in both statutes, and it matters. Where it's met, a setting you clicked in 2022 can beat a document you signed in front of two witnesses in 2026.

If there's no online tool, your documents can speak. You can allow or prohibit disclosure in your will, your trust or your financial POA. That's language your lawyer adds, and it costs you one sentence of conversation to ask for it.

Content is different from the list. The actual text of your emails and messages generally requires your consent, given in one of the ways above, or a court order. A catalogue of electronic communications, meaning who you exchanged messages with and when, is treated as less protected. In these two states the company must disclose the catalogue unless you prohibited it or a court directs otherwise. To receive a catalogue that is available, the personal representative must first send what the statute requires: a written request, a certified death certificate, certified proof of their court appointment, and account details if the company asks.

There are limits and a clock. A fiduciary may not impersonate you. And in Washington and Florida a company has sixty days to comply, counted from when it receives the information the statute requires.

Now the caution. Not every state has these rules, the details differ where they exist, and even in a state that has them, access still

depends on the company's own process, the documents it demands and its terms of service. A statute telling a custodian to comply does not mean the person on the other end of the help form knows that.

To find yours, search your legislature's website for your state's name plus "fiduciary access to digital assets." Or write it on the list for the lawyer in Chapter 11, which is where I put it.

Use the switches the companies already built

Where your state's law gives a changeable online-tool direction priority, use that tool first, and then make the will and the POA agree with it. Where it doesn't, the switch still tells the company what you wanted, which is more than silence does. Either way it's free and it takes minutes, so start there tonight, with the two accounts most people have.

Apple. Apple's Legacy Contact lets you name someone, or more than one someone, to request access to the data in your Apple Account after you die. Apple's own support page, published in September 2026, spells out the mechanics. You generate an access key when you set it up. Your contact needs that key and your death certificate to file the request. Apple tells you plainly what they can't reach: anything in iCloud Keychain, which means saved passwords, passkeys and payment information, plus movies, music, books and subscriptions you bought. You need a device running iOS 15.2, iPadOS 15.2 or macOS Monterey 12.1 or later, and your contact has to be at least thirteen, with the age varying by country.

Two things on that page earned a note in my own file. If you name more than one Legacy Contact, any one of them can act alone, and that includes permanently deleting everything. And Apple suggests printing the access key and keeping a copy with your estate planning papers, which is the first time a technology company has agreed with my green folder about anything.

Google. Google's Inactive Account Manager does a related job from a different angle. You choose how long Google should wait after your account goes quiet, and you pick up to ten people to notify, each with their own slice of your data or none of it. Google's help page explains that it watches sign-ins, recent activity, Gmail use and Android check-ins to decide whether you're still around, and that it asks for a trusted contact's phone number so a stranger holding a forwarded email can't download your life.

The same page carries a line I'd put in front of anyone who keeps twenty years of photographs in Google Photos. Set up no plan, and Google reserves the right to delete an inactive account along with its data, once you've been inactive across Google for at least two years.

Two years of silence, and the pictures are a company's to delete.

Other services have their own versions, under their own names, and they change the names. Rather than print a list that's wrong by the time you read it, do this: open each account you'd hate to lose, look in the settings for anything about legacy, memorialization, inactivity or a trusted contact, and use it. Then write down that you did, and when.

The phone is the master key

Here's the thing people miss while they're worrying about their email.

Your phone is not one of your accounts. It's the key to the rest of them. The bank texts a code to it. The brokerage app lives on it. If you use an authenticator app, those six-digit codes may live only on that handset, or they may sync to an account or have a recovery process. It depends on the product and how you set it up.

Either way, a locked phone with an unknown passcode can stop a competent, authorized agent cold. I've watched it happen to a

woman in our township whose husband had done everything else right.

So where the passcode is kept goes on your list. Not the sticky note. The list.

And if you use an authenticator app, go into it this week and check which kind yours is. Record the recovery method, never a live code. Then ask each bank and brokerage what an authorized agent may use to get in, because that answer is theirs to give, not mine.

Password managers, and the envelope question

CISA, the federal cybersecurity agency, tells people to use a password manager rather than write passwords down. I agree, and security is only half my reason. A manager is the one place where a death plan can be built into the lock itself.

A lot of them offer some kind of emergency or inherited access, where a person you name can request entry and gets it after a waiting period if you don't refuse. That documented process is the method I'd use first. Read how yours works, specifically. How long the wait is, whether the person needs their own account, and what happens to the manager itself if the subscription lapses after you're gone.

Which leaves the question everybody asks me: what about the things the manager can't hand over, like the passcode to the phone the manager lives on?

Not in your will. I'm not going to make a claim about how public a will is in your state, because that varies and I'd be guessing. The reason is simpler and it applies everywhere. A will is a document you can only change by signing it again in front of witnesses. A password is a thing you change in March when the bank makes you. Don't put a moving part inside a document built not to move.

What Dale and I did: we each named the other for emergency access in the manager, and Jess as the backup. The master password is not written anywhere. The only paper is a sealed, dated envelope holding our two phone passcodes, because emergency access can't reach those. It sits in a locked box, not loose in the green file. Two people may open it, Jess and the one of us still living, and the note on the front says so.

The front also says, in Dale's block capitals, that the envelope gives nobody permission to sign in as us. It's there so an authorized person can open a phone and find the institutions, then go through each one's own process.

The list of accounts lives outside the envelope, where it can be updated with a pen. The envelope gets opened once a year, rewritten if anything changed, and resealed with a new date.

Is that perfect security? No. The alternative we were running before, a word and four numbers taped where the church directory lives, was not a security system at all.

Chapter 12 takes up where the originals go and who holds copies, including the key to that box.

The money and the photographs

Two categories need their own minute.

Accounts with money in them that never mail you anything. A bank with no branches. A payment app holding a balance you forgot about. A brokerage you opened on your phone in 2021. Put each one on Chapter 2's asset map and check its beneficiary form like any other account. Then put it on the digital list as well, because finding these is the hard part. Go through twelve months of bank statements and look for transfers out to a name you don't recognize. That's how I found one of ours.

If you hold cryptocurrency in a wallet you control yourself, understand what that means for your family: there is no help line that can reset it. The key is the asset. Tell your lawyer you have it, before you write anything about it anywhere, and ask how they want it handled.

The photographs. Twenty-two thousand of them, in our case, which is a number I did not enjoy learning. Nobody will fight over your photos in a courtroom, and everybody wants them. A copy on a drive in the house, refreshed once a year, costs almost nothing and takes the whole question out of a company's hands.

Same for anything that documents the family: the recipes, the scanned letters, the video of your father at the kitchen table that exists in exactly one place.

And the other direction. If there are things you want gone, say so, in writing, in the letter of instruction rather than in the will. You may not get it honored. You'll get a lot closer than by saying nothing. One sentence is enough.

Your digital list

One page, or two. It goes with the plan. Dale's version took him fifty minutes, most of it spent discovering what the shop's website renewal was actually charging him.

- **Devices.** Each phone, tablet and computer. Who uses it, and where the passcode is kept. Write the location, not the number.
- **Email.** Every address, including the one from the old provider that still receives statements. Mark which one is used to reset the others, because that one is the keystone.
- **The switches you've set.** Apple Legacy Contact, Google Inactive Account Manager, and anything similar elsewhere.

Name the person and the date you set it up. Note where the Apple access key is.

- **Money online.** Branchless banks, payment apps, brokerages, the business's merchant account, anything with a stored card. Name the institution, give four digits of the account and no more, and cross-reference the asset map.
- **Subscriptions and autopay.** What would keep billing a dead man's card, and what breaks if it stops. The domain name for the business website belongs here.
- **Photos and files.** Where they are, whether there's a copy outside the cloud, and who should end up with them.
- **Social accounts.** For each: delete, memorialize, or leave alone. Three words, your choice, in your handwriting.
- **The delete list.** Anything you'd rather nobody read. No explanation required.
- **Password manager.** Which one, who has emergency access, and how long their waiting period is.

Date it at the bottom. Initial it. Put the date on next March's review with everything else.

And when you see the lawyer, ask for two specific things: language in your will giving consent to disclosure of the content of your electronic communications, and matching language in your financial POA so your agent can act while you're alive. Chapter 7 told you to ask for it. This is what you're asking for, and it's a paragraph, not an hour.

Dale rewrote the sticky note as line two of our list that same evening. Then he went out to the garage, came back with a putty knife, and scraped the old one off the cabinet door, because the adhesive had gone hard and the thing had earned it.

Take the trash bag and go look inside your own cabinet doors. You'll find one.

Chapter 10: Second Marriages, Stepchildren, Singles and Other Plans That Need Extra Care

Kevin called on a Tuesday in March of 2024, the same month Dale and I were sorting passwords out of kitchen cabinets. Nine-fifteen at night, which for Kevin means he's just remembered something he meant to do in January.

"Quick question," he said, which from Kevin means forty minutes. "Linda and I did one of those online wills. Everything to each other. Arizona's one of those community property states, right? So that's fine?"

Linda is Kevin's second wife; they married in 2019. She has two grown daughters from her first marriage. Kevin has Tyler, nineteen that spring, from his. I could hear a basketball game on low in the background, and I could hear him waiting for me to say yes.

"It's fine," I told him, "for whoever dies second."

He was quiet long enough that I knew he hadn't thought about the second part.

What "everything to each other" actually promises

Here's the mechanism, plainly. If Kevin dies first, his will leaves everything to Linda. Linda is now alive, in charge of everything that was Kevin's, with her own will, which she can rewrite the next morning if she wants to. She has no legal obligation to leave Tyler a

dime. Neither does the reverse protect her daughters if she goes first. “Everything to each other” is really “everything to whoever outlives the other one, and then whatever that person decides.”

A surviving spouse may intend to provide for stepchildren, but a plan built on “I trust her to take care of my son” is built on hope, and hope is not one of this book’s five pieces of paper.

What people use instead, when they want Tyler’s share protected no matter what Linda does afterward:

- A trust that supports the survivor for their life, with whatever’s left going to a named split between both sides of the family when the survivor dies. A lawyer can draft a trust that limits what the survivor may redirect and names the remainder beneficiaries. How much protection it actually gives depends on its terms and on which assets end up inside it.
- Beneficiary forms split at the account level instead of the will level. Subject to the plan’s rules and any spousal consent it requires, Kevin could ask whether his retirement account permits a split between Linda and Tyler.
- Life insurance bought specifically for one side of the family. If the house and the retirement account are going to Linda, a policy naming Tyler evens the ledger without anyone having to divide the house.

All three deserve legal advice in a blended family. A lawyer can draft the trust and help coordinate the institution-issued beneficiary forms and insurance designation with the rest of the plan. Which one fits depends on things I can’t see from Kevin’s kitchen: how old Tyler is, whether Linda’s daughters are grown and independent, whether the house is titled jointly, how much there is to split in the first place. I told Kevin that on the phone. I’m telling you here. This is the chapter where I say, more than anywhere else in this book, don’t do it yourself.

Stepchildren are not heirs unless you say so

Tyler calls Linda “Linda,” not “Mom,” and that’s their business. But here’s what the law doesn’t care about: affection. A will can provide for stepchildren the same as it can provide for friends and charities, people intestacy would otherwise skip entirely. Without that will, state law decides who inherits, and state law generally follows blood and marriage, not the dinner table. I’ve said this sentence in earlier chapters about other people: a will can do what intestacy won’t. In a blended household it’s the sentence that matters most, because the people intestacy is most likely to skip are the ones sitting at your table every night.

State intestacy rules vary, but do not assume a stepchild will inherit by default. If you want a stepchild to receive property, name them in a properly signed will and coordinate any beneficiary forms. Don’t rely on a family label to carry them in. Give your lawyer each person’s full name and relationship, and ask how the will should define the beneficiary class.

Community property and spousal rights don’t bend for a second marriage

I mentioned, back in Chapter 2, that nine states plus three opt-in states treat most of what a married couple earns during the marriage as owned by both of them equally, regardless of whose name is on the account. Arizona is one of the nine. That rule doesn’t know or care that it’s Kevin’s second marriage. It applies the same as it would to a couple married sixty years.

Separate property states have their own version: an elective share, letting a surviving spouse claim a portion of the estate even if the will tries to leave them out. Traditionally that figure runs around a third in states that use it, though the fraction and what it’s measured against vary, and your state’s number may be different. A will written

to disinherit a current spouse in favor of children from a first marriage can run straight into that statute and lose.

None of this is something you plan around by writing clever language at your kitchen table. If Kevin wanted Tyler to get the bulk of a specific account and Linda to get something else specific, that has to be built by someone who knows which of those rules apply in Arizona, to his accounts, in his situation. I told him to bring the question to a lawyer there, not to guess from what worked for Dale and me in Ohio.

One more piece, already familiar to you from Chapter 3: some retirement plans require the current spouse be named beneficiary unless that spouse signs a specific, witnessed consent to name someone else. A man who wants his 401(k) split between his second wife and his son from his first marriage cannot simply write that on the beneficiary card and assume it holds. If Kevin's plan requires the current spouse to be beneficiary, Linda would need to sign the plan's properly witnessed consent before any share could go to Tyler. Kevin should ask the plan administrator which rule and form apply. Skip that step and the form may default right back to her for the whole account, no matter what anyone intended.

Unmarried and living together

A man in our township, whose name I won't use because he'd rather I didn't, lived with a woman for nineteen years. Never married. When he was hospitalized with a stroke, she sat in a waiting room while his sister, who he'd spoken to maybe four times in a decade, made the decisions. An unmarried partner may have no inheritance rights under your state's default rules, and may be excluded from medical decisions unless you name them in a health care power of attorney. Check your state law with a lawyer before relying on any

default. Not because anyone intends it. Because the forms ask about marriage, not about love or nineteen years of grocery lists.

If you are unmarried and living with someone you want provided for, the paperwork matters more than it would for a married couple, not less. Don't assume married-spouse defaults protect your partner. Ask a lawyer what status and default rights your state recognizes, then name the partner explicitly wherever it's needed. In the will. On the health care power of attorney from Chapter 8. As a beneficiary on the accounts where that matters. Say it in writing, in every place it needs saying.

Single, with no children

Bev was this chapter, before she was Chapter 3's cautionary tale about a payable-on-death account. Widowed, no children, choosing who got what without a spouse's rights or a child's expectations to weigh against. She picked me. Someone else might pick a niece, a church, a friend from forty years back, a hospital that treated them well once.

If that's your situation, the work isn't harder, just different. Choose your people and name them specifically, because without a spouse or children, state intestacy law keeps looking, through parents, then siblings, then more and more distant relatives, until it finds someone, and the person it finds may not be who you'd have picked. In rare cases with no relatives at all, the property can end up belonging to the state. Name a health care agent even though there's no assumed spouse standing by to take the job. If you want to leave something to a cause rather than a person, say so by name, with the organization's full legal name if you can find it. "The hospital" or "the shelter" isn't specific enough for a form, let alone a will.

A child or heir with money trouble, or a disability

This is lawyer territory. If you're planning to leave money to someone who receives needs-based government benefits, a direct inheritance may affect those benefits. SSA says that both a trust's terms and its payments can affect SSI and Medicaid, so consult a lawyer who handles benefits planning before you name this person on a will, trust, or beneficiary form. The same caution applies to an heir with a gambling problem or an addiction a family is actively managing: the lawyer can build in a trustee's discretion instead of handing over a lump sum.

If Medicaid and nursing home costs are part of what you're worried about for yourself, that's a longer conversation than this book can carry. One clause: see an elder law attorney, and start before a crisis, not during one.

Divorce and separation

This book is about your own plan and not about dividing up a marriage. If you're divorced or separating, update everything: the will, every beneficiary form, both powers of attorney, the health care directive. Do not rely on an automatic-revocation rule. Ask a lawyer what your state does, then change every document and institution-issued form yourself. For beneficiary forms, use the five-step audit in Chapter 3; the money side of divorce belongs in *Gray Divorce After 50*. This chapter only asks you to touch every document on your list the week the papers are final, not the week you remember to.

The test: run your plan through four deaths that haven't happened yet

Here's the tool. It isn't legal advice; it's a way to catch the gap before a lawyer has to.

Take your current plan, or your draft of one, and walk it through four scenarios, writing down who ends up with what in each:

1. **You die first.** Who gets what, right now, under what you've signed or what you're about to sign?
2. **Your spouse dies first, then remarries.** If your spouse later marries someone new, does your plan still reach your children, or does it now depend entirely on your spouse's new will?
3. **You and your spouse die in the same accident.** Does the plan address who is treated as surviving whom, or does it leave the result to state law?
4. **A child or stepchild dies before you do.** Does their share pass to their own children, or back to their siblings? If the document doesn't answer, which residue, lapse, anti-lapse or intestacy rule would govern, and is that the result you want? Ask your lawyer.

Kevin and Linda ran this after their lawyer visit that spring. Scenario two was the one that stopped them cold: their online will said nothing about what happened if the surviving spouse remarried, because the template didn't ask. They added a clause. It cost them one more conversation with the lawyer and, Kevin told me, considerably more than the online service had, though I'm not going to put a number on either one.

Write your four answers down. If any of them surprises you, that's the one to bring to Chapter 11.

I told Kevin, before we hung up that night, that "everything to each other" wasn't wrong. It just wasn't finished. He laughed and

said that described most of what he'd done at twenty-six, too.

Tyler doesn't know any of this happened. That's probably right, for now. But the conversation happened before anyone signed anything, which is the only part of this chapter I'd insist on for every blended family, married five years or forty: say out loud, before you sign, who you're trying to protect. The document can't do that part. Only you can.

Chapter 11: Hiring and Briefing an Estate Lawyer (and When You Can Do It Yourself)

Sam's office sits above the hardware store, up a flight of stairs with a rubber runner worn pale in the middle. The waiting room has four chairs, a coffee table and a farm magazine from 2019 that I have now read twice.

We had the two-fifteen on a Tuesday in April of 2024. I brought the green accordion file with both hands, the way you carry a casserole.

Sam's clock runs in tenths of an hour. Six minutes to a tenth, and a tenth is the smallest thing he can write down, which means a two-minute phone call costs six minutes and a question you could have answered yourself costs six minutes.

He had told me on the phone to block out two hours.

It took fifty-two minutes.

Not because Sam is fast. Because every question he asked that afternoon, I already had on paper in front of me. What do you own. In what state. Titled how. Who's named on the retirement accounts. Who's your agent if you can't sign. Who's the backup. The trust question took about the four minutes Chapter 6 already described, and it appeared on the bill as one six-minute unit, because one unit is the smallest thing on his sheet.

I am not claiming we saved a specific amount of money. I don't know what the two-hour version would have cost, because we never bought it. What I can tell you is that sixty-eight minutes of a lawyer's

attention did not get spent on me reciting the name of our credit union.

What a lawyer is actually for, and what they're not

The American Bar Association has a page called “The Lawyer’s Role,” and it is blunter about do-it-yourself kits than I expected. It says it’s easy to be lured by advertising that promises you can save time and money drafting your own will or trust from a website, retail software or a fill-in-the-blank kit. It says it’s unlikely those alternatives will produce a plan that accomplishes everything you want. Its specific complaint is worth repeating, because it isn’t about typing. A canned form, the ABA says, can’t assure you that the form is correct, that assets passing outside your will are properly handled, that state law nuances are accounted for, or that the relevant tax, legal and personal issues are addressed.

Now the fair caveat, which I’d want if I were you. That page is published by an association of lawyers, and it is telling you to hire a lawyer. Read it knowing that.

But look at the four things on its list again and notice that three of them are the exact problems this book has spent ten chapters on. Assets passing outside the will is Chapter 3, and it’s the one most people get wrong. State nuance is every other paragraph. “Relevant personal issues” is Chapter 10’s whole subject.

So here is my honest split, and it isn’t the ABA’s and it isn’t the kit sellers’.

There is one part of this plan I would do myself without a second thought, and the National Institute on Aging agrees: the advance directives. Chapter 8 quoted the NIA on that, and gave you the free places to get your state’s forms. Hand your lawyer a copy if you have

one. Dale and I filled ours in at the kitchen table in March, and Sam read them in about five minutes and said they were fine.

The will, the financial power of attorney and anything involving a trust, I would not do myself. Chapter 4 already told you where I'd put the money, and it's the will. Partly that's the drafting. Mostly it's the signing, because an unwitnessed or badly witnessed will can fail at exactly the moment nobody can fix it.

And then there's a list of situations where I wouldn't just hire a lawyer, I'd hire one before I filled in a single beneficiary form.

A second marriage, or stepchildren, or anybody's children from before. Minor children, or any child young enough to need the money held. Real estate in a second state. A business, including a small business like Dale's. An heir who receives needs-based benefits, or one who can't be handed a lump sum. Anybody you intend to leave out. And any family where you can already name the person who will be unhappy and the sibling they'll call about it.

Those are each a single line here because each one has its own chapter, and I'm not going to re-argue them. What matters is that you recognize your own situation on that list and stop reading advertisements.

If money is the thing standing in the way

It usually is, and nobody says so out loud.

The NIA, writing about the health care side, points people who need help with planning to their local Area Agency on Aging, and names three other routes: state legal aid offices, state bar associations, and local nonprofit agencies, foundations and social service agencies. The Eldercare Locator number is in Chapter 8. Those referral routes are worth a phone call before you decide a plan is out of reach, and a phone call is the whole cost of finding out.

The other free resource is one this book has leaned on all the way through: state court self-help websites. California's is the one I've quoted, because it's unusually good and it's public, and I used its guardianship pages in Chapter 5 and its probate pages in Chapter 6. Find out whether your own state courts publish something like it. They won't give you advice, and they won't draft anything, but they will often tell you plainly what your state requires, which is half of what you're afraid of not knowing.

What I would not do is let the cost question push you toward signing nothing.

I can't tell you which document is cheapest or which order is safe, because there is no universal answer and no source worth trusting that claims one. What I can tell you is where the free route is. If your state publishes an advance-directive form and your situation is the ordinary kind Chapter 8 described, fill that one in now. The NIA says you don't need a lawyer for it, and the forms come from your Attorney General's office or your Area Agency on Aging at no cost. Do that part tonight and it's done.

For everything else, make the order somebody else's job. Ask legal aid, or the first estate lawyer you get on the phone, what has to be drafted first given your particular risks, what each stage costs, and what can safely wait a year. That is a fair question and a short one. Marlene asked a version of it after the seminar and got her answer before she spent anything.

How I'd go looking

Ask your people first. The ABA's own advice, after all the warnings about kits, is that the most important thing is to choose an attorney you have confidence in, through recommendations from friends or from your other professional advisors. That second half is the one people skip. If you have an accountant, ask them. They watch the

aftermath of other people's estate plans and they have opinions they'll share if asked directly.

Then check the qualifications, and know what you're looking at. The ABA explains that not every state requires or allows lawyers to designate a specialty, which in law as in medicine is generally called board certification. Its own Committee on Specialization keeps information on those programs, including state bar programs and programs the ABA has approved. So "board certified in estate planning" means something real in a state that has such a program and means nothing at all in a state that doesn't. Ask which yours is.

Membership signals are softer but not worthless. The ABA says that belonging to certain bar associations or estate planning organizations often indicates dedication to the field. It gives one example by name. Becoming a fellow of the American College of Trust and Estate Counsel, ACTEC, generally indicates extensive experience in estate planning as well as substantial service to the profession. It's a signal, not a requirement. Sam is not a fellow of anything, as far as I know. He has sat across a desk from several hundred families in this county and he returns phone calls.

One filter of my own. I want a lawyer who does this work most weeks, not one who does real estate closings and will "take a look at a will for you." The difference shows up in the questions they ask in the first ten minutes. A lawyer who does this often asks how things are titled before asking what they're worth.

Fees, and why you won't find numbers in this chapter

I'm not going to print a dollar range for estate planning work, and I want to tell you why rather than just leave the gap.

There is no official source for it. Not the IRS, not the ABA, not a state court. Every figure I could find came from a company with a

reason to publish it, and fees move with your state, your county, your facts and the hour of that lawyer's life you happen to catch. If I printed a range, you'd carry it into Sam's office as an expectation, and you'd either feel cheated or overpay with confidence. Both are worse than walking in and asking.

So ask, directly, in the first conversation. The ABA says to be sure to ask your attorney about legal fees, and to see that they're settled to your satisfaction in the written agreement between you and the attorney. That agreement is often called the engagement letter. The ABA adds that most states don't require one, and that you probably should have one anyway. Ask for it in writing.

What to pin down, in the same breath as the number: whether it's a flat fee for the package or billed by the hour, and exactly what's inside it. Does it include the deed, if a deed has to change? Does it include funding a trust, if you're getting one, or does that come later at an hourly rate? Does it include one round of revisions after you read the draft? Does it include the signing appointment and the witnesses? And what does a change cost in three years when a grandchild arrives?

The ABA also mentions that ACTEC's website publishes model engagement letters for a range of estate planning matters, which is a strange and useful thing to know. You can read what a thorough one looks like before you sign yours.

The briefing packet

This is the part that turns a two-hour meeting into a fifty-two-minute one, and it's almost entirely work you've already done.

The ABA's preparation advice is to organize your information on assets, liabilities and title arrangements, and to think about how you feel about providing for various family members. It adds that most lawyers in this area have questionnaires to help. It also says to bring

copies of the important documents: previous wills or trusts, powers of attorney, life insurance policies, employment benefits, prenuptial agreements and divorce decrees.

Here's that list in the form I actually walked in with. Clip it together. Bring copies, keep your originals.

- **The asset map from Chapter 2.** Every line, with the exact title words and the road each item travels. Mine ran to twenty-three lines and three of them still said ASK.
- **The beneficiary audit from Chapter 3,** including the forms you already fixed and the dates you fixed them. This is the sheet that stops a lawyer from designing around a mistake you've corrected, or missing one you haven't.
- **The will decision sheet from Chapter 4.** Executor and backup, the residue in percentages, backup takers, the short list of specific gifts, and your sentence about anyone you mean to leave out. That last line is for the lawyer's eyes, not the will's.
- **The guardian pages from Chapter 5,** if you have children at home, with the date you asked the person.
- **The agent questions from Chapter 7** and the completed health care directives from Chapter 8, plus the name and phone number of each agent and backup.
- **The digital list from Chapter 9,** or at least the two paragraph requests it told you to make.
- **Debts and obligations.** Mortgage, loans, anything you've co-signed, anything the business owes.
- **The old paperwork.** Prior wills and trusts, existing powers of attorney, insurance policies including the group coverage from work, your employer's benefits summary, any prenuptial agreement, any divorce decree, and the deed to anything you own.
- **One page of questions,** which is the next section.

Mine fit in the green file with room over. Sam put the asset map on top of the pile and worked from it the whole hour. When he wrote the will he used my percentages and my backup takers almost word for word. Judgment was the thing I'd brought. Drafting was the thing I'd hired.

Twelve questions for the first meeting

Write these on one sheet and take it in. Cross off the ones that get answered before you ask.

1. How much of your practice is wills, trusts and estates?
2. Is specialty certification available in this state, and are you certified?
3. Looking at my asset map, what passes outside the will, and does anything need to change?
4. Given these facts, do I need a trust, and what would it do that my will and powers of attorney wouldn't?
5. What does my state require for the signing of each document, and who arranges the witnesses?
6. Is the fee flat or hourly, what's included, and will I get an engagement letter?
7. What's not included, and what does it cost?
8. Who holds the originals, and what do I take home that day?
9. What happens to this plan if we move to another state?
10. What should I do myself and not pay you for?
11. Who do I call if you retire, and what happens to my file?
12. What would you do differently if these were your facts?

That last one has never failed me. The answer tells you whether the person across the desk is selling a document or thinking about your

family, and you can hear the difference in the first six words.

Number eleven I learned from Helen, who lost the doctor she'd had for nineteen years and discovered in Chapter 7 what that cost her.

Signing day

The second Thursday in May 2024, late afternoon, because Dale had a service call in Waverly that morning.

Sam's conference room has a window unit that rattles. Two people from his office came in to witness, and a woman from the title company downstairs came up with her notary stamp and a sleeve of stickers. Sam told us how many witnesses the signing needed and in what order it all had to happen. That's exactly the kind of thing that varies state to state. Take your own state's answer from your own lawyer, not from my kitchen.

Then we read every page.

All of it, with Sam waiting. He expected it. I found one thing: my middle name was misspelled on page one of the financial document, written the way people assume instead of the way it is. It took four minutes to fix and reprint. Had I skimmed, some bank clerk in 2031 would have been the one to find it, with Dale sitting across the desk unable to pay his own electric bill.

Dale signed first. He wrote his name the way he writes it on invoices, and when he finished the will he set the pen down and said, "Fourteen minutes." He'd been timing it.

We left with a folder of copies and the documents Sam recommended we keep in our own hands. Where the originals ended up, and who got which copy, is Chapter 12, and it is not a small question.

What I remember from the stairs on the way down is how ordinary it felt. No weight lifted, no moment. A rattling window unit,

a stranger's notary stamp, a woman I'd known since the fourth grade asking me to initial page six.

Six months earlier, Jess had asked me where mine was, and I'd had nothing to say.

Call one office this week and ask for a first appointment. Then start filling the packet, because the appointment is the easy half.

Chapter 12: Keep It Where They'll Find It, and Look at It Every March

The first Saturday in March of 2025, Dale carried the green accordion file to the kitchen table and set it down the way he sets down a part he has already decided is bad.

Nine months earlier we had signed everything in Sam's conference room with the window unit rattling. I had put a note on the December calendar page that said MARCH, FILE, because I knew that otherwise we would do it in July, or we would do it never.

It took forty minutes.

Thirty-eight of those minutes were me reading things out loud and Dale saying "still right" with a coffee cup in his hand. Executor, still right. Agents, still right. Jess's address, still right. Directives, unchanged, both of us in the same health we were in last spring.

Then we got to the credit union line on the asset map and it had gone wrong without anybody doing anything wrong.

In October of 2024 I had moved money out of our credit union savings into a fifteen-month certificate, because the rate was better and I am my mother's daughter. New account. New number. New signature card. Nobody at the counter asked me about a beneficiary, and it did not occur to me to ask them, because in my head that money was still the account I had written down in January with *POD: Jess* beside it in pencil.

It wasn't. The savings account still had Jess on it and about forty dollars in it. The certificate had the money and nobody named.

Nothing terrible had happened. Notice that. Our will sends that money to the same place the POD designation would have, so

nothing was waiting to detonate.

What it was is a road change we never chose. Chapter 2 gave you the four roads. In five minutes at a counter I had moved most of our cash off the beneficiary-form road and onto the will's road. That road ordinarily becomes probate property and follows whatever court or qualifying small-estate process state law provides. I had done it while believing the opposite.

That is what a yearly review is actually for. Not for the dramatic thing. For the thing that moved while you weren't looking.

I fixed it the following Tuesday at the branch. One signature card, one copy to bring home, two lines corrected on the asset map in pen. Dale drew a small star next to the new line, which is his filing system.

Where the originals live

There is one rule here and it holds everywhere. No original should be somewhere your authorized person cannot reach when it is needed.

Not your locked desk whose key is on your keyring. Not a box in the attic nobody else knows about. Not, and I say this because I have seen it, inside a hollowed-out book, which was a real thing a real man in this county did with a will.

Beyond that rule, there are three ordinary homes for original documents, and the right one depends on answers you have to go get.

Your lawyer's office. Many firms will hold original wills in a vault. If yours does, ask what happens to your file if that lawyer retires or the firm closes, which is question eleven from Chapter 11 and the one people skip because it feels rude. Get the answer in writing if you can, and write down the firm's phone number somewhere your family will find it.

A fireproof box at home. The advantage is that your agent can get a document into a bank on a Tuesday morning without an

appointment. Make sure a second person knows where the box is and how to open it, and that your agent is one of them.

A safe deposit box. Before you use one, ask the bank in writing. Who can enter while you are alive but unable to act. Who can enter after death. What authority and which documents each of those people needs. Whether a renter or an agent may remove a document. How the lease and state law affect those answers. Death-only access is not enough; your financial agent may need the original while you are still living. Banks have their own procedures and state rules differ, and the answer also depends on how the box is rented and whose name is on it. If timely access is uncertain, keep that original elsewhere. I am not going to tell you what your bank will say. I am telling you to find out before, rather than have your daughter find out after.

Here is what we did, so you have one concrete version to argue with. Sam keeps the original will in his vault, and we hold a copy stamped as a copy, with a sheet clipped to it saying where the original sits and who to call. The financial powers of attorney we keep ourselves, in a fireproof box on the floor of the hall closet. Chapter 7 is the whole reason: an agent frequently has to physically produce that document, and one your agent can't reach on the worst morning of the year isn't working for you. The health care directives went out to the people on Chapter 8's copies list, and the file copy lives in the green accordion file with everything else.

One more thing worth asking your own lawyer, since I can't answer it for you: whether your state offers any official place to deposit a will for safekeeping, and whether they would recommend it in your situation. Mine is an Ohio question and Ohio law is not mine to state.

Who gets a copy, and who just gets told

Copies are cheap. Confusion is not.

Your financial agent needs the signed document in hand, or needs to know exactly where it is and to be able to get there without you. Give your successor agent the same information. Clip Chapter 7's first-week sheet to the copy, because the document says they may act and the sheet says what to actually do on day one.

Your health care proxy, your alternate and your doctor are already handled by the copies list in Chapter 8, and I'm not going to repeat it here. Make sure that list and this one were done in the same month, so you don't have a 2024 proxy holding a 2026 directive.

Your executor needs to know where the will is. That's it. They don't need to hold an original, and my own preference, which is a preference and not a rule, is that they shouldn't, because documents in circulation get superseded and the superseded one is the one that turns up. Tell them the location and the lawyer's name. Tell them out loud, with a date, the way Chapter 4 told you to ask them in the first place.

And then one person who is not any of the above should know that the green file exists and which drawer it is in. In our house that's Jess. She has never read a page of it. She could put her hand on it in the dark.

The letter of instruction

A letter of instruction is practical guidance, not a legal document. It cannot transfer the dog or the dishes, change a beneficiary, appoint an agent, or authorize account access. Put legally operative choices in the proper signed document; use this letter for locations, contacts, routines, and preferences.

What it is good for is the page that answers the questions your will is too formal to answer and your family will be asking in the first

week, when they are not at their most resourceful.

Mine is two sides of one sheet, and it says: where the original will is and Sam's number. Where the asset map lives and that the account numbers on it are the last four digits only, by design. That the house insurance renews in August and the agent's name is on the policy in the file. That the dog is thirteen and hates the groomer on Fourth Street, and that Jess has agreed to care for the dog; the lawyer confirmed where that arrangement belongs in the signed plan. That the photographs in the hall closet are the only ones I care about and the digital copies from Chapter 9 are on the drive in the same closet. That I would like the good dishes used rather than divided. That Marlene across the road should be called early, because she will know who else to call, and that is a job somebody has to do.

None of that is enforceable. All of it saves somebody an afternoon.

Write yours in your own voice, date it, and rewrite it when it stops being true. It is also the right place for the deletion wishes from Chapter 9, and the wrong place for anything that belongs in the will.

When to look at it

Twice, in two different ways.

The calendar way is once a year. The National Institute on Aging says to treat your advance directives as living documents, review them at least once each year, and update them after a major life event, naming retirement, a move out of state, or a significant change in your health. That's their advice about the medical papers specifically, and I have borrowed the rhythm for the whole file, because once I have the file open anyway, checking six more lines costs me nothing.

The American Bar Association adds a separate clock for one item. It says your insurance coverage should be reviewed at least every two or three years, to confirm the policy is performing as intended, the

company remains in solid financial position, and the ownership and beneficiary designations still match your wishes. That last clause is the one that catches people. A policy can be fine and still be pointed at the wrong person.

The second way isn't a calendar at all. It's a list of things that, when they happen, mean you open the file that week instead of waiting for March.

Somebody named in any document dies. Somebody named gets married or divorced, including you. A child or grandchild arrives. You move to another state. What you own changes substantially, in either direction. Someone's health or capacity changes, including the agent you picked for exactly this reason. Someone named comes into money trouble, or starts relying on needs-based benefits, which sends you back to Chapter 10 and then to a lawyer.

And the quiet one: a law or a figure changes. The federal exclusion number I gave you in Chapter 1 came with a year attached for a reason, and state rules move too. You don't have to track legislation. You have to reread the sources named in Chapter 1 once a year, on the same Saturday, and notice whether the number has a different year on it now.

Changing things without breaking them

What you change depends on which road the thing travels, which is why Chapter 2 came first.

Beneficiary forms are changed at the institution, never in the will, and the change isn't done until the confirmation is in your hand. Chapter 3 gave you the five steps and the audit sheet. Rerun that sheet every March. My credit union certificate is the reason I say so in this tone.

The will is a lawyer visit. A codicil is still available to you, under the signing rules Chapter 4 laid out and with the ABA's warning

about ambiguity between the two documents. I told you there where I come down, and I won't re-argue it. Ask your lawyer to quote both ways and to say which they'd do with your facts.

Titles and deeds are their own job. Chapter 6 told you to get a written answer from the institution and the lawyer before moving an account into a trust, and the same question applies to any retitling at all, including the cheerful kind where someone adds a child's name to make things easier. Ask it before the signature card, not after.

Powers of attorney travel better than people expect. The ABA says a power of attorney that was valid when you signed it generally remains valid after you move, and then says to update it anyway as part of an overall review. Both halves of that are true at once. If you own real property in a second state, the ABA says to check with an attorney that your document covers it.

Advance directives are the exception to "it probably still works." The NIA says that if you spend a lot of time in more than one state, consider preparing the form for each state and keeping a copy in each place. Chapter 8 gave you the NIA's rules for retiring an old version, and gave you the revocation steps that go with them. Do both. A new directive is not in force in any practical sense while last year's copy is still sitting in somebody's filing cabinet looking valid.

What you tell the family, and what you don't

I have an opinion here and it isn't universal.

Tell your grown children the structure. Do not tell them the balances.

The structure is: who holds which job, where the file is, who to call first, that there is a will and a lawyer and where. That information is useful to them, costs you nothing, and prevents the specific kind of grief where somebody spends the week after a funeral searching a

house. We told Jess all of it at a Sunday supper, and she asked two questions.

The balances are a different thing. They change every year, they invite arithmetic, and the arithmetic is almost always done by somebody who is not in the room. Numbers also go stale in a way that jobs don't. What you tell a thirty-two-year-old about your retirement account in 2026 will be wrong by 2029 and remembered as a promise.

If a particular choice in your plan is going to surprise somebody, that is a separate conversation and you should have it while you can be asked follow-up questions. Chapter 1 made the case for that and I'm not making it twice. Just don't confuse "I explained my reasoning" with "I read them the statements."

The March review checklist

One page. Put it in the front pocket, in front of everything, so it's the first thing your hand touches.

1. Read last year's date on the inside flap. Write down what's happened since.
2. Will: still names the right executor, backup, residue split and backup takers. Any name changed, moved, died or married.
3. Guardian nomination, if you have children at home: person still willing, still in the right place, backup still valid.
4. Financial power of attorney: agent and successors still right, still told, still reachable. Phone numbers current.
5. Health care directive and proxy: reviewed per Chapter 8's list. Copies in the right six places. Old versions dated and filed.
6. Beneficiary audit from Chapter 3, rerun line by line against this year's statements. Every account for which the institution offers a

beneficiary designation, including eligible accounts opened since last March; mark the rest N/A and confirm their road.

7. Any new account, new deed, new vehicle, new policy, new online-only anything. Add to the asset map with its road.
8. Access test on every original: name the person who would need each document, while you are living and after, and confirm they could reach it that week. Re-ask the bank's safe-deposit questions if anything about the box or the lease has changed.
9. Insurance, on the ABA's two-to-three-year clock: performing as intended, company solid, ownership and beneficiaries still right.
10. Digital list from Chapter 9: online-tool settings still set, access key still where the note says, password envelope opened, rewritten if needed, resealed with today's date.
11. Letter of instruction: still true.
12. The sources from Chapter 1: do this year's figures have this year on them.
13. Date the inside flap before the file goes back in the drawer.

And one page that is not a checklist, which we call the card. One side of one index card, in the front pocket and in a sealed envelope that Jess has. On it: our two names. Sam's name and number. Where the original will is. Where the fireproof box is and how to open it. Who the agents are, for money and for medical. Where the asset map is. And one instruction at the bottom, "start with the asset map, not the house." That card is the first thing anybody should read and the only thing they need to find.

What a review is really measuring

Forty minutes, once a year, and the only thing we found was a certificate of deposit I'd opened myself five months earlier.

That's the honest advertisement for this chapter. Not a catastrophe averted. A small, invisible drift corrected before it had eleven years to sit there, which is how long Aunt Bev's savings account named a man who had been dead since 2011.

Bev didn't do anything careless. She did one sensible thing in 2009 and then never opened the drawer again, and the drawer is where the damage happens.

So: put MARCH on a calendar page now, while the book is open. Then write today's date on the inside flap of whatever folder you've got, even if the folder is still mostly empty, because next March you will want to know exactly how far along you were when you wrote it.

“Where’s Yours?” Again

Christmas afternoon 2025, after the plates were cleared and before anybody started hunting for a coat, I handed Jess an envelope.

Business size, her name on the front in pen. I had started to write something above her name, thought better of it, and threw that first envelope away.

She knew what was in it. We’d talked about the card in March, when she came down for a weekend and found Dale and me at the table with the green accordion file open between us. One index card, both sides used, everything Chapter 12 told you to put on it.

She read it standing up, which is how she reads everything.

Then she put it in her purse.

I had to go stand at the sink for a minute over that. For two years I moved my mother’s health care power of attorney from one handbag to the next and could not have told you why I bothered. Chapter 8 is what came of that habit, at two in the morning, behind a curtain. I never told Jess about the carrying part. She did it anyway.

Owen is four. He spent the afternoon running a fire truck along the baseboard behind the tree, and at one point he came over and asked what was in the envelope, and Jess told him “Grandma’s phone numbers,” which is true enough for four.

Marlene made the call

The Sunday after Christmas, Marlene came across the road with a coffee cake in a foil pan and cut herself a piece before her coat was off. She’s done that since the spring we moved in.

She had an appointment card in her cardigan pocket. Sam's office, the second Tuesday in January, ten in the morning. On the back, in her own handwriting: *will, POA, health care*. The three she told me on the phone she'd spend her money on, the week after that steakhouse lunch where the man in the good jacket said "probate" nineteen times and never once asked anybody in the room what they owned.

That lunch was February 2024. Her appointment is January 2026.

Almost two years. I'd rather give you that number straight than tidy it up, because it may be the most useful thing in these last pages. Marlene isn't lazy and she isn't in denial. She is seventy-two now and nothing about her situation has gotten more complicated since that lunch. What she needed was to hear the question more than once, from somebody who wasn't selling her anything, in a kitchen, with cake on a plate. Most people are like that. I was, and I had settled three estates.

She asked me, buttoning her coat, whether she should bring anything.

The deed, her last bank statement, and the two sheets she'd filled in at my table.

Write the date down.

The order to do it in

If you've read this far and signed nothing, this is the paragraph to photocopy.

Make the list first (Chapter 2), because every decision after it needs it. Then the beneficiary forms on the retirement accounts, the insurance and the bank accounts, because those move the most money and can be fixed in an afternoon (Chapter 3). Then the will (Chapter 4), with the guardian nomination in it if you have children

at home (Chapter 5), and the trust question answered by your own facts rather than by a free lunch (Chapter 6). Then the two powers of attorney, money and medical, which stand a better chance of mattering before any will does (Chapters 7 and 8). Then the digital list (Chapter 9). Then put it where the people who need it can reach it, and write one Saturday a year on the calendar to read it through (Chapter 12).

Chapter 10 runs alongside all of that if your family isn't simple, and Chapter 11 is the lawyer and how to walk in with your homework already done.

One thing I'd say once more, plainly. The advance directives Dale and I filled in ourselves, on a free form, at this table. Everything else in the stack went across Sam's desk, and I'd do it that way again. Stepchildren, minor children, property in a second state, a business, an heir who relies on needs-based benefits, anybody who will be unhappy with what you decided: that is when you pay a lawyer licensed where you live. Not because paperwork is magic. Because the questions you don't know to ask are the ones that cost your family money.

Nothing here is finished

I wanted finished. In the fall of 2023, sitting with that probate envelope, finished was the entire goal, and it turns out not to be a thing that exists.

What Dale and I have is current. The will is current. The forms were current as of the first Saturday in March, which is when we found the certificate of deposit I'd opened myself and discovered I had moved most of our cash onto a road we hadn't chosen. Something else will drift this year. A company will merge. A rate will change and I'll move money again, because I am my mother's

daughter about rates. Somebody named in those papers will get older, including me.

That isn't failure. That's what it is to own things and still be alive. The yearly Saturday exists because the drift exists, and forty minutes a year is a cheap way to stay honest with yourself.

Dale said it better, out in the garage three weeks after we made that first list, reading it over under his good light. He said we should have done this at forty.

He's right. We didn't. The folder exists anyway.

The drawer

For most of the spring of 2024, the second kitchen drawer wouldn't close.

The green accordion file had swollen past what the drawer could take: the asset map, the beneficiary confirmations, the decision sheets, the directives, a copy of the will stamped as a copy with a note clipped to it saying where the original is. I remember putting my hip against the drawer front and hearing paper fold.

So I cleared the cabinet above the phone to make room, which is how I came to be holding a sticky note with my husband's email password on it, taped inside a cabinet door since about 2012.

The drawer closes now. It has closed since March of 2024, and I notice it every single time, which Dale finds funny and I don't intend to stop.

That's the whole of what I wanted, and I didn't know it until I had it. Not a legal strategy. Not a saved dollar I can point to. A drawer that closes, in a kitchen in Chillicothe, with one index card's worth of instructions in my daughter's purse eighty miles north.

Find out where yours is. Then get the drawer to close.